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ONLINE TENDR NO.	
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B I NO.		2020-21
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GOVERNMENT OF MAHARASHTRA
PUBLIC WORKS DEPARTMENT

P.W. Region, Aurangabad
Public Works Circle, Aurangabad
Public Works Division, Partur

TENDER DOCUMENT

(TENDER FOR UNEMPLOYED ENGINEER)

Name of work

CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA
TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Amount put to Tender:	Part-I	Rs.15,26,898/-
	Part-II	Rs.2,13,274/-
	Total	Rs. 17,40,172/-

NAME OF AGENCY: _____

AGREEMENT NO. : _____

NAME OF WORK: CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA,
TQ.GHANSAWANGI, DIST. JALNA.

I N D E X

Sr.No.	Particulars.
1.	General Information of Contract.
2.	Details of Work.
3.	Detailed Tender Notice
4.	Work Description
5.	Tender Form B-1
6.	TENDER FOR WORKS
7.	MEMORANDUM
8.	Conditions of contract.
9.	General conditions of contract
10.	Additional tender conditions
11.	Special conditions.
12.	Schedule 'A'
13.	Appendix "A"
14.	Conditions for the materials to be procured by the contractor
15.	Additional conditions for cement, steel, bitumen to be brought by the contractor
16.	Declaration
17.	Form – 1 list of machinery
18.	Form – 2 list of technical personnel
19.	Form – 3 Details of works
20.	<i>Annexure – I Affidavit</i>
21.	<i>Annexure - II Guarantee bond for security deposit.</i>
22.	<i>Annexure – III Frequency Test</i>
23.	<i>Annexure – IV Testing Statement</i>
24.	Schedule B

GOVERNMENT OF MAHARASHTRA
PUBLIC WORKS DEPARTMENT
ORIGINAL AGREEMENT No.B-1

NAME OF WORK : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA
TANDA, TQ.GHANSAWANGI, DIST. JALNA.

- 1) Name of Contractor :-
- 2) Date of Receipt of Tender :-
- 3) Number and Date of Works Order :-
- 4) Amount put to Tender :- **₹.17,40,172/-**
- 5) Percentage quoted :-
- 6) Amount of Contract :-
- 7) Date of Commencement :-
- 8) Time stipulated for completion :- **06 (Six) Calendar Months**
Of work including monsoon.
- 9) Date of Completion as per Agreement :-
- 10) Actual Date of Completion :-
- 11) Reference to sanction of Extension of time :-
 - 1) _____
 - 2) _____
 - 3) _____

Certified that this original Agreement Contains

Pages 1 to _____

Fly leaves _____ Nos.

Drawings _____ Nos.

DETAILS OF WORK

NAME OF WORK : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Estimated Cost put to tender : ₹.17,40,172/-

Earnest Money : ₹. 17,000 /-

The EMD. Exemption Certificate is not allowed

Total Security Deposit 4% (Four percent) ₹. 68,000 /- (50% in cash at the time of Agreement and 50% from R.A.bills).

TENDER SCHEDULE

Cost of Tender Form	:	₹. 560/-
Period for Downloading Tender Forms	:	https://maharashtra.nextprocure.in sub portal https://organizations.maharashtra.nextprocure.in
Date of Pre-bid meeting	:	Not Applicable
Last date and time for online bid preparation and hash submission (technical and financial)	:	Refer Online schedule on portal https://maharashtra.nextprocure.in
Date and time for online bid data decryption and re-encryption (technical and commercial)	:	Refer Online schedule on portal https://maharashtra.nextprocure.in
Receipt of <u>online EMD</u> , stamp paper of Rs. 100/- bond Affidavit (Original) in prescribed format given in Annexure I sworn before Executive Magistrate / Notary and <u>Tender Document fees, to be paid online only via Payment Gateway mode</u> / TDR of Additional performance Security Deposit (If required) / Location Map of Hot Mix Plant	:	<u>Document Tender Fee and EMD to be paid via online mode only.</u>
Registration class	:	Unemployed Engineer

TO BE FILLED IN BY THE BIDDER

I/We have quoted my/our offer in percentage rate in words as well as in figures. I/We further undertake to enter into contract in regular "B-1" form in Public Works Department.

Name and signature of Unemployed Engineer with complete address

GOVERNMENT OF MAHARASHTRA
PUBLIC WORKS DEPARTMENT

INVITATION FOR TENDERS
Detailed Tender Notice

NAME OF WORK : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Online percentage rate tenders in 'B-1' Form are invited by the **Executive Engineer, Public Works Division, Partur** for the following work from Unemployed Engineer of Jalna District in appropriate class of the Public Works Department of Maharashtra State. The name of work, estimated cost, earnest money, security deposit, time limit for completion etc. are as under.

Sr. No.	Name of work	Estimated Cost (Rupees)	Earnest Money (Rupees)	Security Deposit (Rupees)	Class of Registration	Time limit in Tender (Calendar Months)
1	CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.	Part-I 15,26,898/- <u>Part-II 2,13,274/-</u> Total : 17,40,172	17,000/-	68,000/-	Unemployed Engineer	6 months Calendar Months (including monsoon)

Tender form, conditions of contract, specifications and contract drawings can be downloaded from the eTendering portal of Public Works Department, Government of Maharashtra i.e. <https://maharashtra.nextprocure.in> sub portal <https://organizations.maharashtra.nextprocure.in> after entering the details, payment of Rs. 560/- (Rupees Five hundred sixty only) should be paid online using payment gateway. The fees of tender document will be non refundable. Further information regarding the work can be obtained from the above office. Tender acceptance is subject to verification of documents uploaded by the Bidder. Uploading of any false information or document by the Bidder will result in rejection of bid and action as may deem fit will be taken by the department against the Bidder.

TENDERING PROCEDURE :

1.1 A. Blank Tender Forms

i) Tender Forms can be purchased from the e-Tendering Portal of Public Works Department, Government of Maharashtra i.e. <https://maharashtra.nextprocure.in> sub portal <https://organizations.maharashtra.nextprocure.in> after paying Tender Fees via online mode as per the Tender Schedule.

ii) The bidder shall submit the EMD through RTGS / NEFT in the account of **Executive Engineer, Public works Division, Partur** vide account No. 646905003198 IFSC CODE : ICIC 0006469.

1.2 B PRE-TENDER CONFERENCE : Not Applicable

1.2.1 Not Applicable

Not Applicable

1.2.2

- 1.2.3 The tender submitted by the tenderer shall be based on the clarification, additional facility offered (if any) by the Department, and this tender shall be unconditional. Conditional tenders shall be summarily REJECTED.
- 1.2.4 All tenderers are cautioned that tenders containing any deviation from the contractual terms and conditions, specifications or other requirements and conditional tenders will be treated as non responsive. The tenderer should clearly mention in forwarding letter that his offer (in envelope No. 1 & 2) does not contain any conditions, deviations from terms and conditions stipulated in the tender.
- 1.2.5 Tenderers should have valid Class II / III Digital Signature Certificate (DSC) obtained from any Certifying Authorities. In case of requirement of DSC, interested Bidders should go to <http://maharashtra.etenders.in/mah/DigitalCerti.asp> and follow the procedure mentioned in the document 'Procedure for application of Digital Certificate'.
- 1.2.6 The Tenderers have to make a payment of online service charges for the use of Electronic Tendering during Online Bid Data Decryption and Re-encryption stage of the Tender.
- 1.2.7 For any assistance on the use of Electronic Tendering System, the Users may call the below numbers:
Help Desk at through Email ID helpdesk@nextenders.com or Phone No. 9168737744, 7499116961, 9356492848 & 7506797596
- 1.2.8 Tenderers should install the Mandatory Components available on the Home Page of <https://maharashtra.nextprocure.in> sub portal <https://organizations.maharashtra.nextprocure.in> under the section 'Mandatory Components' and make the necessary Browser Settings provided under section 'Internet Explorer Settings'
- 1.3 Guidelines to Bidders on the operations of Electronic Tendering System of Public Works Department.**
<https://maharashtra.nextprocure.in> sub portal <https://organizations.maharashtra.nextprocure.in>

A. Pre-requisites to participate in the Tenders processed by PWD :

1. Enrolment and Empanelment of Unemployed Engineer on Electronic Tendering System:

The Bidders interested in participating in the Tenders of Public Works Department –processed using the Electronic Tendering System shall be required to enroll on the Electronic Tendering System to obtain User ID.

After submission of application for enrolment on the System, the application information shall be verified by the Authorized Representative of the Service Provider. If the information is found to be complete, the enrolment submitted by the Vendor shall be approved.

For participating in Limited and Restricted tenders the registered vendors have to apply for empanelment on the sub-portal of PWD in an appropriate class of registration. The empanelment will have to be approved by the respective officer from the PWD. Only empanelled vendors will be allowed to participate in such tenders.

The Bidders may obtain the necessary information on the process of enrolment and empanelment either from Helpdesk Support Team or may visit the information published under the link Enroll under the section E-Tendering Toolkit for Bidders on the Home Page of the Electronic Tendering System.

The bidder who are exempted for EMD shall Select EMD Exempted option under registration category while filling/Editing the online Enrollment form, to avail the EMD exemption in tender process.

2. Obtaining a Digital Certificate :

The Bid Data that is prepared online is required to be encrypted and the hash value of the Bid Data is required to be signed electronically using a Digital Certificate (Class - II or Class - III). This is required to maintain the security of the Bid Data and also to establish the identity of the Bidder transacting on the System.

The Digital Certificates are issued by an approved Certifying Authority authorized by the Controller of Certifying Authorities of Government of India through their Authorized Representatives upon receipt of documents required to obtain a Digital Certificate.

Bid data / information for a particular Tender may be submitted only using the Digital Certificate which is used to encrypt the data / information and sign the hash value during the Bid Preparation and Hash Submission stage. In case during the process of preparing and submitting a Bid for a particular Tender, the Bidder loses his/her Digital Signature Certificate (i.e. due to virus attack, hardware problem, and operating system problem), he / she may not be able to submit the bid online. Hence, the Users are advised to store his / her Digital Certificate securely and if possible, keep a backup at safe place under adequate security to be used in case of need.

In case of online tendering, if the Digital Certificate issued to an Authorised User of a Partnership Firm is used for signing and submitting a bid, it will be considered equivalent to a no objection certificate / power of attorney to that user to submit the bid on behalf of the Partnership Firm. The Partnership Firm has to authorize a specific individual via an authorization certificate signed by a partner of the firm (and in case the applicant is a partner, another partner in the same form is required to authorise) to use the digital certificate as per Indian Information Technology Act, 2000.

Unless the Digital Certificate is revoked, it will be assumed to represent adequate authority of the Authority User to bid on behalf of the Firm for the Tenders processed on the Electronic Tender Management System of Government of Maharashtra as per Indian Information Technology Act, 2000. The Digital Signature of this Authorized User will be binding on the Firm. It shall be the responsibility of Partners of the Firm to inform the Certifying Authority or Sub Certifying Authority, if the Authorized User changes, and apply for a fresh Digital Signature Certificate. The procedure for application of a Digital Signature Certificate will remain the same for the new Authorised User.

The same procedure holds true for the Authorized Users in a Private / Public Limited Company. In this case, the Authorization Certificate will have to be signed by the Director of the Company or the Reporting Authority of the Applicant.

For information on the process of application for obtaining Digital Certificate, the Bidders may visit the section Digital Certificate on the Home Page of the Electronic Tendering System.

3. Recommended Hardware and Internet Connectivity:

To operate on the Electronic Tendering System, the Bidders are recommended to use Computer System with at least 1 GB of RAM and broadband connectivity with minimum 512 kbps bandwidth.

4. Set up of Computer System for executing the operations on the Electronic Tendering System:

To operate on the Electronic Tendering System of Government of Maharashtra, the Computer System of the Bidders is required be set up. The Bidders are required to install Utilities available under the section Mandatory Installation Components on the Home Page of the System.

The Utilities are available for download freely from the above mentioned section. The Bidders are requested to refer to the E-Tendering Toolkit for Bidders available online on the Home Page to understand the process of setting up the System, or alternatively, contact the Helpdesk Support Team on information / guidance on the process of setting up the System.

5. Payment for Service Provider Fees :

In addition to the Tender Document Fees payable to PWD, the Bidders will have to pay Service Providers Fees through online payments gateway service available on Electronic Tendering System. For the list of options for making online payments, the Bidders are advised to visit the link E-Payment Options under the section E-Tendering Toolkit for Bidders on the Home Page of the Electronic Tendering System.

B. Steps to be followed by Bidders to participate in the e-Tenders processed by PWD

1. Preparation of online Briefcase:

All Bidders enrolled on the Electronic Tendering System of Government of Maharashtra are provided with dedicated briefcase facility to store documents / files in digital format. The Bidders can use the online briefcase to store their scanned copies of frequently used documents / files to be submitted as a part of their bid response. The Bidders are advised to store the relevant documents in the briefcase before starting the Bid Preparation and Hash Submission stage.

In case, the Bidders have multiple documents under the same type (e.g. multiple Work Completion Certificates) as mentioned above, the Bidders advised to either create a single .pdf file of all the documents of same type or compress the documents in a single compressed file in .zip or .rar formats and upload the same.

It is mandatory to upload the documents using the briefcase facility. Therefore, the Bidders are advised to keep the documents ready in the briefcase to ensure timely bid preparation.

Note: Uploading of documents in the briefcase does not mean that the documents are available to PWD at the time of Tender Opening stage unless the documents are specifically attached to the bid during the online Bid Preparation and Hash Submission stage as well as during Decryption and Re-encryption stage.

2. Online viewing of Detailed Notice Inviting Tenders:

The Bidders can view the Detailed Tender Notice along with the Time Schedule (Key Dates) for all the Live Tenders released by PWD on the home page of PWD e-Tendering Portal on <https://maharashtra.nextprocure.in> sub portal <https://organizations.maharashtra.nextprocure.in> under the section Recent Online Tender.

3. Download of Tender Documents:

The Pre-qualification / Main Bidding Documents are available for free downloading. However to participate in the online tender, the bidder must purchase the bidding documents via online mode by filling the cost of Tender Form Fee.

4. Online Bid Preparation and Submission of Bid Hash (Seal) of Bids:

Bid preparation will start with the stage of EMD Payment which bidder has to pay online using any one online pay mode as RTGS, NEFT or payment gateway.

For EMD payment, If bidder use NEFT or RTGS then system will generate a challan (in two copies). with unique challan No specific to the tender. Bidder will use this challan in his bank to make NEFT/RTGS Payment via net banking facility provided by bidder's bank.

Bidder will have to validate the EMD payment as a last stage of bid preparation. If the payment is not realised with bank, in that case system will not be able to validate the payment and will not allow the bidder to complete his Bid Preparation stage resulting in nonparticipation in the aforesaid eTender.

Note:

*** Realisation of NEFT/RTGS payment normally takes 2 to 24 hours, so it is advised to make sure that NEFT/RTGS payment activity should be completed well before time.**

*** NEFT/RTGS option will be depend on the amount of EMD.**

*** Help File regarding use of ePayment Gateway can be downloaded from eTendering portal.**

Submission of Bids will be preceded by online bid preparation and submission of the digitally signed Bid Hashes (Seals) within the Tender Time Schedule (Key Dates) published in the Detailed Notice Inviting Tender. The Bid Data is to be prepared in the templates provided by the Tendering Authority of PWD. The templates may be either form based, extensible tables and / or uploadable documents. In the form based type of templates and extensible table type of templates, the Bidders are required to enter the data and encrypt the data using the Digital Certificate.

In the uploadable document type of templates, the Bidders are required to select the relevant document / compressed file (containing multiple documents) already uploaded in the briefcase.

Notes:

a. The Bidders upload a single document or a compressed file containing multiple documents against each unuploadable option.

b. The Hashes are the thumbprint of electronic data and are based on one - way algorithm.

The Hashes establish the unique identity of Bid Data.

- c. The bid hash values are digitally signed using valid Class - II or Class - III Digital Certificate issued any Certifying Authority. The Bidders are required to obtain Digital Certificate in advance.
- d. After the hash value of bid data is generated, the Bidders cannot make any change / addition in its bid data. The bidder may modify bids before the deadline for Bid Preparation and Hash Submission as per Time Schedule mentioned in the Tender documents.
- e. This stage will be applicable during both, Pre-bid / Pre-qualification and Financial Bidding Processes.

5. Close for Bidding (Generation of Super Hash Values) :

After the expiry of the cut - off time of Bid Preparation and Hash Submission stage to be completed by the Bidders has lapsed, the Tender will be closed by the Tender Authority. The Tender Authority from PWD shall generate and digitally sign the Super Hash values (Seals).

6. Decryption and Re-encryption of Bids (submitting the Bids online):

After the time for generation of Super Hash values by the Tender Authority from PWD has lapsed, the Contractors have to make the online payment of **Rs. 624/-** towards the fees of the Service Provider.

After making online payment towards Fees of Service Provider, the Bidders are required to decrypt their bid data using their Digital Certificate and immediately re-encrypt their bid data using the Public Key of the Tendering Authority. The Public Key of the Tendering Authority is attached to the Tender during the Close for Bidding stage.

Note: The details of the Processing Fees shall be verified and matched during the Technical Opening stage.

At this time, the Bidders are also required to upload the files for which they generated the Hash values during the Bid Preparation and Hash Submission stage.

The Bid Data and Documents of only those Bidders who have submitted their Bid Hashes (Seals) within the stipulated time (as per the Tender Time Schedule), will be available for decryption and re-encryption and to upload the relevant documents from Briefcase. A Bidder who has not submitted his Bid Preparation and Hash Submission stage within the stipulated time will not be allowed to decrypt / re-encrypt the Bid data / submit documents during the stage of Decryption and Re-encryption of Bids (submitting the Bids online).

7. Shortlisting of Bidders for Financial Bidding Process :

The Tendering Authority will first open the Technical Bid documents of all Bidders and after scrutinizing these documents will shortlist the Bidders who are eligible for Financial Bidding Process. The shortlisted Bidders will be intimated by email.

8. Opening of the Financial Bids :

The Bidders may remain present in the Office of the Tender Opening Authority at the time of opening of Financial Bids. However, the results of the Financial Bids of all Bidders shall be available on the PWD e-Tendering Portal immediately after the completion of opening process.

9. Tender Schedule (Key Dates):

The Bidders are strictly advised to follow the Dates and Times allocated to each stage under the column "Bidder Stage" as indicated in the Time Schedule in the Detailed Tender Notice for the Tender. All the online activities are time tracked and the Electronic Tendering System enforces time-locks that ensure that no activity or transaction can take place outside the Start and End Dates and Time of the stage as defined in the Tender Schedule.

At the sole discretion of the Tender Authority, the time schedule of the tender stages may be extended.

C) Terms and Conditions For Online-Payments

The Terms and Conditions contained herein shall apply to any person ("User") using the services of PWD Maharashtra, hereinafter referred to as "Merchant", for making Tender fee and Earnest Money Deposit(EMD) payments through an online Payment Gateway Service ("Service") offered by ICICI Bank Ltd. in association with E Tendering Service provider and Payment Gateway Service provider through PWD Maharashtra website i.e. <https://maharashtra.nextprocure.in> sub portal <https://organizations.maharashtra.nextprocure.in> Each User is therefore deemed to have read and accepted these Terms and Conditions.

Privacy Policy

The Merchant respects and protects the privacy of the individuals that access the information and use the services provided through them. Individually identifiable information about the User is not willfully disclosed to any third party without first receiving the User's permission, as covered in this Privacy Policy.

This Privacy Policy describes Merchant's treatment of personally identifiable information that Merchant collects when the User is on the Merchant's website. The Merchant does not collect any unique information about the User (such as User's name, email address, age, gender etc.) except when you specifically and knowingly provide such information on the Website. Like any business interested in offering the highest quality of service to clients, Merchant may, from time to time, send email to the User and other communication to tell the User about the various services, features, functionality and content offered by Merchant's website or seek voluntary information from The User.

Please be aware, however, that Merchant will release specific personal information about the User if required to do so in the following circumstances:

- a) in order to comply with any valid legal process such as a search warrant, statute, or court order, or available at time of opening the tender

- b) if any of User's actions on our website violate the Terms of Service or any of our guidelines for specific services, or
- c) to protect or defend Merchant's legal rights or property, the Merchant's site, or the Users of the site or;
- d) to investigate, prevent, or take action regarding illegal activities, suspected fraud, situations involving potential threats to the security, integrity of Merchant's website/offerings.

General Terms and Conditions For E-Payment

1. Once a User has accepted these Terms and Conditions, he/ she may register on Merchant's website and avail the Services.
2. Merchant's rights, obligations, undertakings shall be subject to the laws in force in India, as well as any directives/ procedures of Government of India, and nothing contained in these Terms and Conditions shall be in derogation of Merchant's right to comply with any law enforcement agencies request or requirements relating to any User's use of the website or information provided to or gathered by Merchant with respect to such use. Each User accepts and agrees that the provision of details of his/ her use of the Website to regulators or police or to any other third party in order to resolve disputes or complaints which relate to the Website shall be at the absolute discretion of Merchant.
3. If any part of these Terms and Conditions are determined to be invalid or unenforceable pursuant to applicable law including, but not limited to, the warranty disclaimers and liability limitations set forth herein, then the invalid or unenforceable provision will be deemed superseded by a valid, enforceable provision that most closely matches the intent of the original provision and the remainder of these Terms and Conditions shall continue in effect.
4. These Terms and Conditions constitute the entire agreement between the User and Merchant. These Terms and Conditions supersede all prior or contemporaneous communications and proposals, whether electronic, oral, or written, between the User and Merchant. A printed version of these Terms and Conditions and of any notice given in electronic form shall be admissible in judicial or administrative proceedings based upon or relating to these Terms and Conditions to the same extent and subject to the same conditions as other business documents and records originally generated and maintained in printed form.
5. The entries in the books of Merchant and/or the Payment Gateway Service Providers kept in the ordinary course of business of Merchant and/or the Payment Gateway Service Providers with regard to transactions covered under these Terms and Conditions and matters therein appearing shall be binding on the User and shall be conclusive proof of the genuineness and accuracy of the transaction.
6. **Refund For Charge Back Transaction:** In the event there is any claim for/ of charge back by the User for any reason whatsoever, such User shall immediately approach Merchant with his/ her claim details and claim refund from Merchant alone. Such refund (if any) shall be effected only by Merchant via payment gateway or by means of a demand draft or such other means as Merchant deems appropriate. No claims for refund/ charge back shall be made by any User to the Payment Gateway Service Provider(s) and in the event such claim is made it shall not be entertained.
7. In these Terms and Conditions, the term "**Charge Back**" shall mean, approved and settled credit card or net banking purchase transaction(s) which are at any time refused, debited or charged back to merchant account (and shall also include similar debits to Payment Gateway Service Provider's accounts, if any) by the acquiring bank or credit card company for any reason whatsoever, together

with the bank fees, penalties and other charges incidental thereto.

8. Refund for fraudulent/duplicate transaction(s): The User shall directly contact Merchant for any fraudulent transaction(s) on account of misuse of Card/ Bank details by a fraudulent individual/party and such issues shall be suitably addressed by Merchant alone in line with their policies and rules.
9. Server Slow Down/Session Timeout: In case the Website or Payment Gateway Service Provider's webpage, that is linked to the Website, is experiencing any server related issues like 'slow down' or 'failure' or 'session timeout', the User shall, before initiating the second payment,, check whether his/her Bank Account has been debited or not and accordingly resort to one of the following options:
 - i. In case the Bank Account appears to be debited, ensure that he/ she does not make the payment twice and immediately thereafter contact Merchant via e-mail or any other mode of contact as provided by Merchant to confirm payment.
 - ii. In case the Bank Account is not debited, the User may initiate a fresh transaction to make payment.

However, the User agrees that under no circumstances the Payment Gateway Service Provider shall be held responsible for such fraudulent/duplicate transactions and hence no claims should be raised to Payment Gateway Service Provider. No communication received by the Payment Gateway Service Provider(s) in this regard shall be entertained by the Payment Gateway Service Provider.

Limitation of Liability

1. Merchant has made this Service available to the User as a matter of convenience. Merchant expressly disclaims any claim or liability arising out of the provision of this Service. The User agrees and acknowledges that he/ she shall be solely responsible for his/ her conduct and that Merchant reserves the right to terminate the rights to use of the Service immediately without giving any prior notice thereof.
2. Merchant and/or the Payment Gateway Service Providers shall not be liable for any inaccuracy, error or delay in, or omission of (a) any data, information or message, or (b) the transmission or delivery of any such data, information or message; or (c) any loss or damage arising from or occasioned by any such inaccuracy, error, delay or omission, non-performance or interruption in any such data, information or message. Under no circumstances shall the Merchant and/or the Payment Gateway Service Providers, its employees, directors, and its third party agents involved in processing, delivering or managing the Services, be liable for any direct, indirect, incidental, special or consequential damages, or any damages whatsoever, including punitive or exemplary arising out of or in any way connected with the provision of or any inadequacy or deficiency in the provision of the Services or resulting from unauthorized access or alteration of transmissions of data or arising from suspension or termination of the Services.
3. The Merchant and the Payment Gateway Service Provider(s) assume no liability whatsoever for any monetary or other damage suffered by the User on account of:
 - (I) the delay, failure, interruption, or corruption of any data or other information transmitted in connection with use of the Payment Gateway or Services in connection thereto; and/ or
 - (ii) any interruption or errors in the operation of the Payment Gateway.
4. The User shall indemnify and hold harmless the Payment Gateway Service Provider(s) and Merchant and their respective officers, directors, agents, and employees, from any claim or demand, or actions arising out of or in connection with the utilization of the Services.

The User agrees that Merchant or any of its employees will not be held liable by the User for any loss or damages arising from your use of, or reliance upon the information contained on the Website, or any failure to comply with these Terms and Conditions where such failure is due to circumstance beyond Merchant's reasonable control.

Miscellaneous Conditions :

1. Any waiver of any rights available to Merchant under these Terms and Conditions shall not mean that those rights are automatically waived.
2. The User agrees, understands and confirms that his/ her personal data including without limitation details relating to debit card/ credit card transmitted over the Internet may be susceptible to misuse, hacking, theft and/ or fraud and that Merchant or the Payment Gateway Service Provider(s) have no control over such matters.
3. Although all reasonable care has been taken towards guarding against unauthorized use of any information transmitted by the User, Merchant does not represent or guarantee that the use of the Services provided by/ through it will not result in theft and/or unauthorized use of data over the Internet.
4. The Merchant, the Payment Gateway Service Provider(s) and its affiliates and associates shall not be liable, at any time, for any failure of performance, error, omission, interruption, deletion, defect, delay in operation or transmission, computer virus, communications line failure, theft or destruction or unauthorized access to, alteration of, or use of information contained on the Website.
5. The User may be required to create his/ her own User ID and Password in order to register and/ or use the Services provided by Merchant on the Website. By accepting these Terms and Conditions the User agrees that his/ her User ID and Password are very important pieces of information and it shall be the User's own responsibility to keep them secure and confidential. In furtherance hereof, the User agrees to;
 - i. Choose a new password, whenever required for security reasons.
 - ii. Keep his/ her User ID & Password strictly confidential.
 - iii. Be responsible for any transactions made by User under such User ID and Password.

The User is hereby informed that Merchant will never ask the User for the User's password in an unsolicited phone call or in an unsolicited email. The User is hereby required to sign out of his/ her Merchant account on the Website and close the web browser window when the transaction(s) have been completed. This is to ensure that others cannot access the User's personal information and correspondence when the User happens to share a computer with someone else or is using a computer in a public place like a library or Internet café.

Debit/Credit Card, Bank Account Details

1. The User agrees that the debit/credit card details provided by him/ her for use of the aforesaid Service(s) must be correct and accurate and that the User shall not use a debit/ credit card, that is not lawfully owned by him/ her or the use of which is not authorized by the lawful owner thereof. The User further agrees and undertakes to provide correct and valid debit/credit card details.
2. The User may make his/ her payment(Tender Fee/Earnest Money deposit) to Merchant by using a debit/credit card or through online banking account. The User warrants, agrees and confirms that when he/ she initiates a payment transaction and/or issues an online payment instruction and provides his/ her card / bank details:

- i. The User is fully and lawfully entitled to use such credit / debit card, bank account for such transactions;
- ii. The User is responsible to ensure that the card/ bank account details provided by him/ her are accurate;
- iii. The User is authorizing debit of the nominated card/ bank account for the payment of Tender Fee and Earnest Money Deposit
- iv. The User is responsible to ensure sufficient credit is available on the nominated card/ bank account at the time of making the payment to permit the payment of the dues payable or the bill(s) selected by the User inclusive of the applicable Fee.

Personal Information

3. The User agrees that, to the extent required or permitted by law, Merchant and/ or the Payment Gateway Service Provider(s) may also collect, use and disclose personal information in connection with security related or law enforcement investigations or in the course of cooperating with authorities or complying with legal requirements.
4. The User agrees that any communication sent by the User vide e-mail, shall imply release of information therein/ therewith to Merchant. The User agrees to be contacted via e-mail on such mails initiated by him/ her.
5. In addition to the information already in the possession of Merchant and/ or the Payment Gateway Service Provider(s), Merchant may have collected similar information from the User in the past. By entering the Website the User consents to the terms of Merchant's information privacy policy and to our continued use of previously collected information. By submitting the User's personal information to us, the User will be treated as having given his/her permission for the processing of the User's personal data as set out herein.
6. The User acknowledges and agrees that his/ her information will be managed in accordance with the laws for the time in force.

Payment Gateway Disclaimer

The Service is provided in order to facilitate payment of Tender Fees/Earnest Money Deposit online. The Merchant or the Payment Gateway Service Provider(s) do not make any representation of any kind, express or implied, as to the operation of the Payment Gateway other than what is specified in the Website for this purpose. By accepting/ agreeing to these Terms and Conditions, the User expressly agrees that his/ her use of the aforesaid online payment service is entirely at own risk and responsibility of the User.

Works

1.4 ENVELOPE No. 1: (Scan Documents shall be Uploading from original only)

The bidder must purchase the bidding documents via online mode by filling the cost of Tender.

The first envelope "Envelope No. 1" shall contain the following documents:

- 1.4.1 Scanned from original of Valid Registration certificates as a Registered Unemployed Engineer of Concerned District with Government of Maharashtra in appropriate class
- 1.4.2 Scanned copy of Affidavit in respect of genuineness of documents contained in the Envelope No.1 in the prescribed proforma as per Annexure-III (Separate Stamp paper shall be attached for each tender)
- 1.4.3 Scanned from original list of works completed and work in hand and works tendered along with supporting certificates.(From Unemployed Quota and From General Tender) upload the work done Certificate which as issued by department.
- 1.4.4 Scanned Copy of valid Registration Certificate under Goods & Service Tax Act issued by competent Authority and this certificate should be valid on the date of opening of tender otherwise his/their Envelope No.2 will not be opened.
- 1.4.5 Upload scanned copy of Income Tax returns at last two financial year i.e. 2017-18, 2018-19
- 1.4.6 Self declaration on plain paper regarding Work allotted, completed /incomplete works. (From Only Unemployed Contract, Lottery) **as per prescribed proforma given in Annexure II**

Note : Even though the bidders meet the above qualifying criteria, they are subjected to be disqualified if they have made misleading or false representation in the forms statement and attachments submitted as proof of the qualification requirements and / or record of post performance such as abandoning the works, not properly completing the contract, inordinate delays in completion litigation history or financial failures etc.

1.5 ENVELOPE No. 2 TENDER (FINANCIAL BID)

- (i) Upload Blank Tender Copy only in Word Format Issued and Digitally Signed by the Department
- (ii) Offer to be submitted Online. In case of discrepancy, if any, between the offer quoted in figure and that appearing in words , the lower of the two only will be taken as the offer quoted by the tenderer.

1.6 SUBMISSION OF TENDER: -

Refer to Section 'Guidelines to Bidders on the operations of Electronic Tendering System of Public Works Department' for details.

1.7 OPENING OF TENDERS:

On the date, specified in the Tender Schedule, following procedure will be adopted for opening of the Tender.

(A) ENVELOPE No. 1 :- (Documents)

First of all Envelope No. 1 of the tender will be opened online to verify its contents as per requirements. If the various documents contained in this envelope do not meet the requirements of the Department, a note will be recorded accordingly by the tender opening authority and the said tenderers Envelope No. 2 will not be considered for further action and the same will be recorded.

The decision of the tender opening authority in this regard will be final and binding on the bidders.

(B) ENVELOPE No. 2: (Financial Bid)

a) This envelope shall be opened online immediately after opening of Envelope No. 1, only if contents of Envelope No. 1 are found to be acceptable to the Department. The tendered rates in Schedule 'B' or percentage **above/below** the estimated rates shall then be read out. in the presence of bidders who remain present at the time of opening of Envelope No. 2.

1.8 EARNEST MONEY :

Earnest Money in the form of cheques or any other form except above will not be accepted.

- i) The bidder shall submit the **EMD** through RTGS / NEFT in the account of **Executive Engineer, Public works Division, Partur** vide account **No. 646905003198 IFSC CODE : ICIC 0006469.**
- (ii) The amount will be refunded to the unsuccessful tenderers on deciding about the acceptance or otherwise of the tender. In case of successful tenderer, it will be refunded on his paying initial Security Deposit and completing the tender documents in form B-1.

1.9 A SECURITY DEPOSIT:

(i) The successful tenderer whose tender is accepted will have to pay **Rs. 68,000/-** towards the Security Deposit

(ii) **Rs**/- is to be deposited in cash or Bank Guarantee/Demand Draft/ FDR of scheduled bank, F.D.R. of the scheduled bank / National Saving Certificate duly pledged in the name of the **Executive Engineer Public Works Division, Partur** towards the initial Security Deposit, valid within the time limit prescribed in clause 1 of B-1 Form, agreement till completion of defect liabilities period failing which his earnest money will be forfeited to Government.

(iii) In addition to the above, an amount of **Rs. 34,000/-** will be deducted from the running bills at 2% of value of the gross bill towards balance security deposit. This is a compulsory deduction.

1.9. B. CONDITION FOR PAYMENT OF ADDITIONAL PERFORMANCE SECURITY DEPOSIT IF THE OFFER IS RECEIVED LOWER MORE THAN 1% BELOW :

- A. In case lowest successful bidder's offer found more than 1.00% below the estimated cost put to tender, in that case, the tenderer shall have to pay Additional Performance Security Deposit drawn in favour of the concerned Executive Engineer (in form of Demand Draft Only) within 7 (Seven) days [in no case limit of 7 days will be increased] from the date of opening of Financial bid i.e. 2nd envelope as specified below ;
- B. If Tenderer's offer is upto 10% below the estimated cost put to tender, then the Additional Performance Security Deposit shall be 1% of the estimated cost put to tender.
- C. If Tenderer's offer is upto 15% below the estimated cost put to tender, Tenderer shall submit 1% plus the percentage by which tender offer is more than 10% below of amount put to tender.
- D. If Tenderer's offer is more than 15% below the estimated cost put to tender, Tenderer shall have to submit Additional Performance Security as specified below.

1.	For offer upto 10% below the estimated cost put to tender	1%
2.	For offer upto 15% below the estimated cost put to tender (15% - 10% = 5%)	5%
3.	More than 15% below tenderer have to submit (e.g. if tenderer offered 19% below tenderer have to submit (19 – 15% = 4% x 2 = 8%))	8%
	Total (1% + 5% + 8%)	14%

- E. If the calculated amount of additional Performance Security deposit is less than Rs.1000/- then the performance security deposit shall be Rs.1000/- minimum of the estimated cost put to tender.
- F. Amount of Additional Performance Security should be rounded upto two decimal only.
- G. All above Demand Draft shall be either of Government Bank or Scheduled Bank drawn in favour of Concerned Executive Engineer only. In respect of Demand Draft it's duly mentioning the MICR and IFSC code of said bank shall be mentioned specifically on the said Demand Draft.
- H. Successful Tenderer's Additional Performance Security will be refunded immediately upon the Certificate of satisfactory completion of works issued by Executive Engineer. In all other cases additional Performance Security shall be forfeited to Government.
- I. In case of lowest successful bidder whose offer found more than 1% below fails or neglects to deposit the Additional Performance Security within 8 (eight) specified days, then his EMD shall be forfeited to Government and 2nd lowest tender will become lowest and will be negotiated for award of work.
- J. The said amount of Additional Performance Security shall not carry any interest whatsoever.

Return of Additional Security

The additional performance security shall be returned immediately upon satisfactory completion of work the certificate of which shall be issued by the EE before releasing the additional security

1.10 ISSUE OF FORMS:

Information regarding contract as well as blank tender forms can be downloaded from the eTendering website upon providing the details of the payment of cost as detailed in the N.I.T.

1.11 TIME LIMIT:

The work is to be completed within time limit as specified in the N.I.T. which shall be reckoned from the date of written order for commencing the work and shall be inclusive of monsoon period.

1.12 TENDER RATE:

No alteration in the form of tender and the schedule of tender and no additions in the scope of special stipulations will be permitted. Rates quoted for the tender shall be taken as applicable for all leads and lifts.

1.13 TENDER UNITS:

The tenderers should particularly note the units mentioned in the Schedule "B" on which the rates are based. No change in the units shall be allowed. In the case of difference between the rates written in figures and in words, the correct rate will be the one, which is lower of the two.

1.14 CORRECTION:

No corrections shall be made in the tender documents. Any corrections that are to be made shall be made by crossing the incorrect portion and writing the correct portions above with the initials of tenderer.

1.15 TENDER'S ACCEPTANCE :

Acceptance of tender will rest with the **Executive Engineer, Public Works Division, Partur** who reserves the right to reject any or all tenders without assigning any reason therefor. The tenderer whose tender is accepted will have to enter in to a regular B-1 agreement within 10 days of being notified to do so. In case of failure on the part of Tenderer to sign the agreement within the stipulated time, the earnest money paid by him shall stand forfeited to the Government and the offer of the tenderer shall be considered as withdrawn by him.

1.16 CONDITIONAL TENDER :

The tenders who do not fulfil the condition of the notification and the general rules and directions for the guidance of Bidder in the agreement form or are incomplete in any respect are likely to be rejected without assigning any reason therefore.

- 1.17(a)** The Tenderers shall be presumed to have carefully examined the drawings, conditions and specifications of the work and have fully acquainted themselves with all details of the site, the conditions of rock and its joints, pattern, river, weather characteristics, labour conditions and in general with all the necessary information and data pertaining to the work, prior to tendering for the work.
- 1.17(b)** The data whatsoever supplied by the Department along with the tender documents are meant to serve only as guide for the tenderers while tendering and the Department accepts no responsibility whatsoever either for the accuracy of data or for their comprehensiveness.
- 1.17(c)** The quarries for extraction of metal, murum etc. provided in the sanctioned estimate are as per survey conducted by the Department. The Bidder should however examine these quarries and see whether full quantity of materials required for execution of the work strictly as per specification are available in these source before quoting the rates. In case the materials are not available due to reasons whatsoever, the Bidder will have to bring the materials from any other source with no extra cost to Government. The rates quoted, should therefore be for all leads and lifts from wherever the materials are brought at site of work and inclusive of royalty to be paid to the Revenue Department by the Bidder.
- 1.18 POWER OF ATTORNEY:**
If the tenderers are a firm or company, they should in their forwarding letter mention the names of all the partners together with the name of the person who holds the power of Attorney, authorizing him to conduct all transactions on behalf of the body, along with the tender.
- 1.19** The tenderer may, in the forwarding letter, mention any points are may wish to make clear but the right is reserved to reject the same or the whole of the tender if the same becomes conditional tender thereby.
- 1.20** The Bidder or the firms tendering for the work shall inform the Department if they appoint their authorized Agent on the work.
- 1.21** No foreign exchange will be released by the Department for the purchase of plants and machinery for the work by the Bidder.
- 1.22** Any dues arising out of contract will be recovered from the Bidder as arrears of Land Revenue, if not paid amicably. Moreover, recovery of Government dues from the Bidders will be affected from the payment due to the Bidder from any other Government works under execution with them.
- 1.23** All pages of tender documents, conditions, specifications, correction slips etc. shall be initialled by the tenderer. The tender should bear full signature of the tenderer, or his authorized power of Attorney holder in case of a firm.
- 1.24** The Income Tax at 2.30 % including surcharge or percentage in force from time to time or at the rate as intimated by the competent Income Tax authority shall be deducted from bill amount whether measured bill, advance payment or secured advance.
- 1.25** The successful tenderer will be required to produce, to the satisfaction of the specified concerned authority a valid concurrent license issued in his favour under the provisions of the Contract Labour (Regulation and Abolition) Act 1970 for starting the work. On failure

to do so, the acceptance of the tender shall be liable to be withdrawn and also liable for forfeiture of the earnest money.

- 1.26 The tenderer shall submit the list of apprentices engaged by the Bidder under Apprentice Act.
- 1.27 Cess @ 1% (One percent) shall be deducted at source from every bill of the Bidder by the Executive Engineer Under “ Building and Other Construction for workers Welfare Cess Act 1996
- 1.28 The GST @ 2 % of the contract amount will be recovered from the bill of the registered contractors who are registered under GST Act.
- 1.29 Contractor shall submit a certificate to the effect that “All the payments to the labour / staff are made in bank accounts of staff linked to Unique identification Number (AADHAR CARD)”. The certificate shall be submitted by the contractor within 60 days from the commencement of contract. If the time period of contract is less than 60 days then such certificate shall be submitted with 15 days from the date of commencement of contract.
- 1.30 Clarification regarding various clauses :
1. The rates quoted by the contractor shall be excluding sales tax and all other taxes but shall include GST that the contractor will have to pay for the performance of this contract.
- 2. Conditions for GST**
- As per government of Maharashtra P.W. Department English circular No.Sankiran-2017/C.R.121 (Part-ii) / building-2 dt.-19/09/2017 & dt.23.10.2017 GST shall be payable on the accepted contract value at prevailing rates separately. Contractor shall quote his offer excluding GST.
3. Provisional Amount of GST @2% i.e. 1% C.G.S.T. and 1% S.G.S.T. will be deducted at source (TDS) after the enforcement of section 51 of Maharashtra Goods and Service Tax Act, 2017.
- 1.31 Clause – 38 : Claims for Quantities Entered in the tenders.
Excess quantity of any work shall be executed by prior permission of competent authority. The quantities shall be payable at accepted tender rates only.

1.32 VALIDITY PERIOD :

The offer shall remain open for acceptance for minimum period of 90 days from the Date of opening of Envelope No. 2 (Financial Bid) and thereafter until it is withdrawn by the Bidder by notice in writing duly addressed to the authority opening the tender and sent by Registered Post Acknowledgment due.

**NAME OF WORK : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA
TANDA, TQ.GHANSAWANGI, DIST. JALNA.**

ANNEXURE II

Affidavit (on Rs.500/- Stamp Paper)

I..... age Address
.....(Authorized signatory to sign the contract)
hereby submit, vide this affidavit in truth, that I am the owner of the contracting firm
..... / authorized signatory and I am submitting the documents in
envelope no.1 for the purpose of scrutiny of the contract. I hereby agree to the conditions
mentioned below :

1. I am liable for action under Indian Penal Code for submission of any false /
fraudulent paper / information submitted in envelope no.1
2. I am liable for action under Indian Penal Code if during contract period and defect
liability period, any false information, false bill of purchases supporting proof of
purchase, proof of testing submitted by my staff, subletting company or by myself, I
will be liable for action under Indian Penal Code.
3. I am liable for action under Indian Penal Code if any paper are found false /
fraudulent during contract period and even after the completion of contract
(finalization of final bill)

**(Signature of contractor)
(seal of company)**

Work Description

Name of Work- CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

As per Schedule B

FORM B-1

PUBLIC WORKS DEPARTMENT

P.W.Region, Aurangabad

P.W.Circle, Aurangabad

Executive Engineer, Public Works Division, Partur.

- 1) All work proposed to be executed by contract shall be notified in a form of invitation to tender, pasted on a board hung up in the office of the Executive Engineer and signed by **Executive Engineer, Public Works Division, Partur**

The form will state the work to be carried out as well as date of submitting and opening tender the time allowed for carrying out the work, also the amount of earnest money to be deposited with the tender and the amount of security deposit to be deposited by the successful tenderer and the percentage if any to be deducted from bills. It will also states whether a quarry fees, royalties and ground floor rents will be granted. Copies of the specifications designs and drawings and estimated rates, schedule rates and any other documents required in connection with the work which will be signed by Executive Engineer for the purpose of identification shall also be open for inspection by bidders at the office of the Executive Engineer during office hours.

Where the work are proposed to be executed according to the specifications recommended by a Bidder and approved by a competent authority on behalf of the Government of Maharashtra, specifications with designs and drawing shall form part of the accepted tender.

- 2) In the event of the tender being submitted by a firm, it must be signed separately by each partner thereof, and in the event of the absence of any partner it shall be signed on his behalf by a person holding a power of attorney authorising him to do so.

A (i) Not applied

(ii) In the event of his tender being accepted, subject to the provision of sub clause (iii) below, the said amount of earnest money shall be appropriated towards the amount deposit payable by him under condition of General Conditions of Contract.

(iii) If after submitting the tender, the Bidder withdraws his offer or modifies the same or if after the acceptance of his tender the Bidder fails or neglects to furnish the balance of security deposit, without prejudice to any other rights and powers of the Government hereunder, or in law, Government shall be entitled to forfeit the full amount of the earnest money deposited by him.

- iv) In the event of his tender not being accepted, the amount of earnest money deposited by the bidders shall, unless it is prior thereof forfeited under the provision of sub-clause (ii) above, be refunded to him on his passing receipt therefore.
- 3) Receipt for payments made on account of any work, when executed by a firm, should also be signed by all the partners. Except where the bidders are described in their tender as a firm, in which case the receipts shall be signed in the name of the firm by one of the partners, or by some other person having authority to give effectual receipts for the firm.
 - 4) Any person who submits a tender shall fill up the usual printed form including the column of estimated quantities stating at what rate he is willing to undertake all item of the work. Tenders which propose any alteration in the work specified in the said form of invitation to tender, or in the time allowed for carrying out the work or which contain any other conditions of any sort, will be liable for rejection. No single tender shall include more than one work, but bidders who wish to tender for two or more works shall submit a separate tender for each. Tenderers shall have the name and the number of work to which they refer written outside the envelope
 - 5) The **Executive Engineer, Public Works Division, Partur** or his duly authorized assistant will open tenders in the presence of any intending bidders who may be present at the time and will enter the amount of the several tenders in a comparative statement in a suitable form. In the event of a tender being accepted, the Bidder shall thereupon, for the purpose of identification, sign copies of the specifications and other documents mentioned in Rule 1.
 - 6) The Officer competent to dispose of the tender shall have the right to reject any or all of the tenders.
 - 7) No receipt for any payment alleged to have been made by a contractor in regard to any matter relating to this tender or the contract shall be valid and binding on Government unless it is signed by the Executive Engineer.
 - 8) The memorandum of the work to be tendered for and the schedule of materials to be supplied by the Public Works Department and their rates shall be filled in and completed by the office of the Executive Engineer before the tender form is issued if a form issued to an intending tenderer has not been so filled in and completed he shall request the said office to have done this before the completes and delivers his tender
 - 9) All work shall be measured net by standard measure and according to the rules and customs of the Public Works Department without reference to any local custom.
 - 10) Under no circumstance shall any Bidder be entitled to claim enhanced rates for any item in this contract.

- 11) All correction and additions or pasted slips should be initialed.
- 12) The measurement of work will be taken according to the usual method in the Public Work Department and no proposal to adopt alternative methods will be accepted. The Executive Engineer's decision as to what is "the usual method in use in Public Work Department will be final".
 - (i) The Bidder shall give a list of machinery in their possession and which they propose to use on the work.
 - (ii) The Bidder will have to construct shed for storing materials procured by him at his own cost at the work site having double locking arrangement. The materials will be taken for use in the presence of the Departmental Person. No materials will be allowed to be removed from site of the work.
- 13) The tender will be liable to be rejected, if while submitting it, the tenderer or in the case of a firm each partner thereof does not sign or the signature / signatures is / are not attested by a witness of the tender in the space provided for the purpose.
- 14) **Use of Government Machinery**
 - (a) If Government Machinery is available and the Bidder desires to hire it for Work on the project it may be hired to him subject to the rules and hire charges that may be laid down by the Government from time to time during the currency of tender
 - (b) No security will be taken from the Bidder, so long as the machinery is worked by the departmental staff and under the entire control of department and is not handed over to the Bidder at all for operation by his crew and staff and the charges for the use of machinery are levied on hourly basis and as per prevailing schedule of rate for hire charges.
 - (c) Machinery should be worked only where the departmental staff is confident to use it safely & never in difficult situation and dangerous spot.
 - (d) The recovery of plant hire charges will be immediately made through the next Running Accounts bills.
- 15) The tendering bidders shall furnish a declaration along with the tender showing all works for he has already entered into contract, and the value of work that remains to be executed in each case on the date of submitting tender

- 16) In view of the difficult position regarding the availability of foreign exchange, no foreign exchange would be released by the Department for the purchase of plant and machinery required for the execution of the work contracted for.
- 17) The Bidder will have to construct shed for storing controlled and valuable materials issued to him under schedule 'A' of the agreement. The materials will then be taken for use in the presence of the departmental person. No material will be allowed to be removed from the site of works.
- 18) The tendering Bidder should furnish a detailed statement of works in hand, showing the cost of works in hand, the works completed against each with certificate from head of the office concerned.

TENDER FOR WORKS

I / We hereby tender for the execution for the Governor of Maharashtra (here in before and here in after referred to as “**Government**”) of the work specified in the under written memorandum within the time specified in such memorandum at* that rate quoted by me at appropriate place provide online in financial bid percent below / above the estimated rates entered in **Part-I of Schedule ‘B’** (memorandum showing items of work to be carried out) and in accordance in all respects with the specifications, designs, drawing and instructions in writing referred to in rule 1 here of and in clause 13 of the annexed conditions of contract and agree that when materials for the work are provided by Government such materials and the rates to be paid for them shall be as provided in **Schedule ‘A’** hereto.

* In figure as well as in words.

MEMORANDUM

(a) If several sub work are included they should be detailed in a separate list.

(a) General Description:- CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

(c) The amount of earnest money to be deposited shall be in accordance with the provision of the paras 206 and 207 of the M.P.W. Manual.

(b) Estimated cost : ₹.17,40,172/-

(c) Earnest Money: ₹.17,000/-

(d) The deposit shall be accordance with paras 213 & 214 of M.P.W. Manual.

(d) Security Deposit :

(i) Cash (not less than amount of earnest money) ₹. 34,000/-

(ii) To be deducted from current bills ₹. 34,000/-

Total : ₹.68,000/-

(e) This percentage where no security deposit is taken will vary from 5% to 10% according to the requirement of the case. Where security deposit is taken see note to clause (1) of condition of contract.

(e) Percentage, if any, to be deducted from bill so as to make up the total amount required as security deposit by time the half the work as measured by the cost is done 2 percent.

(f) Give schedule where necessary , showing dates by which various items to be completed.

(f) Time allowed for the work from date of written order to commence is **6 (Six)** months including monsoon should this tender be accepted.

I / We hereby agree that this offer shall remain open for acceptance for a minimum period of 90 days from the date fixed for opening the same and thereafter until it is withdrawn by us / by notice in writing duly addressed to the authority opening the tenders and sent by registered post A.D. or otherwise delivered at the office of such authority. Treasury challan No._____ dated _____ Term Deposit Receipt; in respect of sum **₹.34,000/-** representing the earnest money is herewith forwarded. The amount of earnest money shall not bear interest and shall be liable to be forfeited to the government should I / We fail to (1) abide by the stipulation to keep the offer open for the period mentioned above or (2) signed and complete the contract documents required by the Engineer and furnish the security deposit as specified in item (d) of memorandum contained in paragraph 1 above, within the time limit laid down in clause (i) of the annexed general conditions of the contract. The amount of earnest may be adjusted towards the security deposit or refunded to me / us if so

desired by me / us in writing unless the same or any part thereof has been forfeited as aforesaid above, within the time limit laid down in clause

I / We have secured exemption from payment of earnest money after executing the necessary bond in favour of Government a true copy of which is enclosed herewith, should any occasion for forfeiture of earnest money for this work arise due to failure on my / our part to (1) abide by the stipulation to keep the offer open for the period mentioned above or (2) sign and complete the contract documents and furnish the security deposit as specified in item (d) of the memorandum contained in paragraph 1 above within the time limit laid down in clause (1) of the annexed General condition of the contract the amount payable be me/us may, at the option of the Engineer, be recovered out of the amount deposited in lump sum for securing exemption in so far as the same may extend in terms of the said bond and in the event of the deficiency, out of any other money which are due or payable to me / us by the Government under any other contract or transaction of any nature whatsoever or otherwise. should this tender be accepted

I /we hereby agree to abide by and fulfill all the terms and provision of the conditions of contract annexed hereto so far as applicable and in default to forfeit and pay to government the sum of money mentioned in the said condition. Receipt no -----
---- dt ----- from the government Treasury at in respect of the sum Rs /- forwarded representing the earnest money (a) the full value of which is to be absolutely forfeited to Government should/we not deposit the fully amount of security specified in the above memorandum in accordance with Clause 1(A) of the said conditions of the contract. otherwise the said sum of Rs /-hall be refunded

Bidder

Signature of Bidder
before submission of
tender.

(Address)

Dated the _____ day of _____ 2019

Witness

Signature of witness
to Bidder's Signature.

(Address)

Dated the _____ day of _____ 2019

Signature of the officer by
whom accepted.

The above tender is hereby accepted by me on behalf of the
Governor of Maharashtra.

**Executive Engineer
Public Works Division, Partur**

Dated the _____ day of _____ 2019

CONDITIONS OF CONTRACT

Security Deposit

Clause1: The person / persons whose tender may be accepted (herein after called the Bidder, which expression shall unless excluded by or repugnant to the context include his, heirs executors, administrators, Bidder and assigns) shall (A) within 10 days (which may be extended by the Superintending Engineer concerned upto 15 days if the Superintending Engineer thinks fit to do so) of the receipt by him of the notification of the acceptance of his tender deposit with the Executive Engineer in cash or Govt. securities endorsed to the Executive Engineer (if deposited for more than 12 months) of sum sufficient which will make up the full security deposit specified in tender or (B) permit Government at the time of making any payment to him for work done under the contract to deduct such as will amount to 1(One)percent of all moneys so payable, such deduction to be held by Government by way of security deposit, provided always, that, in the event of the Bidder depositing a lump sum by way of security deposit as contemplated at (A) above, then and in such case, a the sum so deposited shall not amount to 1 (One) percent, of the total estimated cost of the work, it shall be lawful for Government at the time of making any payment to the Bidder for work done under the contract, to make up the payment to the Bidder for work done under the contract to make up the full amount of 1(One) percent, by deducting a sufficient sum from every such payment as last aforesaid, until the full amount of the security deposit is made up.

All compensation or other sum of money payable by the Bidder to government under the terms of his contract may be deducted from or paid by the sale of sufficient part of his security deposit or from the interest arising there from or from any sums which may be due or may become due by Government to the Bidder under any other contract or transaction of any nature on any account whatsoever, and in the event of his security deposit being reduced by reason of any such deduction or sale as aforesaid the Bidder shall within ten days there after make good in cash or Government securities endorsed as aforesaid, any sums or sums which may have been deducted from or raised by sale of his security deposits or may part thereof. The security deposit referred to, when paid in cash may, at the cost of the depositor, be converted into interest bearing securities provided that the depositor has expressly desired this in writing.

If the amount of the Security Deposit to be paid in lump sum within the period specified at (A) above is not paid, the tender / Contract already accepted shall be considered as cancelled and legal step will be taken against the Bidder for recovery of the amounts. The amount of the Security Deposit lodged by a Bidder shall be refunded along with the payment of the final bill, if the date up to which the Bidder has agreed to maintain the work in good order is over. If such date is not over, only 50% amount of security deposit shall be refunded along with the payment of the final bill. The amount of security deposit retained by the Government shall be released after expiry of period up to which the Bidder has agreed to maintain the work in good order is over. In the event of the Bidder failing or neglecting to complete rectification work within the period up to which the Bidder has agreed to maintain the work in good order, then subject to provisions of clause 17 and 20 here of the amount of security deposit retained by Government shall be adjusted towards the excess cost incurred by the department on rectification work *+ This will be the same percentage as that in the tender at (e).

Compensation for delay

Clause 2 : The time allowed for carrying out the work as entered in the tender shall be strictly observed by the contractor and shall be reckoned from the date on which the order to commence work is given to the contractor. The work shall throughout the stipulated period of the contract be proceeded with, all due diligence (time being deemed to be the essence of the contract on part of the contractor) and the contractor shall pay as compensation an amount equal to one percent, or such smaller amount as the Superintending Engineer (whose decision in writing shall be final) may decide, of the amount of the estimated cost of the whole work as shown in the tender for every day that work remains un-commenced, or unfinished after the proper dates. And further to ensure good progress during the execution of the works, the contractor shall be bound in all cases, in which the time allowed for any work exceeds one month to complete.

+	1/4 of the work in	1/4	of the time
	1/2 of the work in	1/2	of the time
	3/4 of the work in	3/4	of the time
	Full work	06 (Six) Month including Monsoon	

In the event of the contractor failing to comply with these conditions he shall be liable to pay as compensation an amount equal to one percent, or such smaller amounts as the Superintending Engineer (whose decision in writing shall be final) may decide of the said estimated cost of the whole work for every day that the due quantity of work remains incomplete. Provided always that the total amount of compensation to be paid under provision of this clause shall not exceed 10 percent of the estimated cost of the work shown in the tender. Superintending Engineer should be the final authority in this respect irrespective of the fact that the tender is accepted by Executive Engineer

Action when whole of Security Deposit is forfeited.	Clause 3 : In any case in which under any clause or clauses of this contracts the contractor shall have rendered himself liable to pay compensation amounting to the whole of his security deposit (whether paid in one sum or deducted by installments) or in the case of abandonment of the work owing to serious illness or death of the contractor or any other cause, the Executive Engineer on behalf of the Governor of Maharashtra shall have power to adopt any of the following courses as he may deem best suited to the interest of Government. a) To rescind the contract (of which rescission notice in writing to the contractor under the hand of the Executive Engineer shall be conclusive evidence) and in that case the security deposit of the Contractor shall stand forfeited and be absolutely at the disposal of Government. b) To carry out of work or any part of the work departmentally debiting the contractor with the cost of the work, expenditure incurred on tools and plant, and charges on additional supervisory staff including the cost of work charged establishment employed for getting unexecuted part of the work completed and crediting him with the value of the work done departmentally in all respects in the same manner and at the same rates as if it had been carried out by the contractor under the terms of the contract. The certificate of the Executive Engineer as to the cost of the work and other allied expenses so included and the value of the work so done departmentally shall be final and conclusive against the contractor. c) To order that the work of the contractor be measured up and to take such part thereof as shall be unexecuted out of his hands and to give it to another contractor to complete, in which case all expenses incurred on advertisement for fixing a new contracting agency, additional supervisory staff including the cost of work charged establishment and cost of the work executed by the new contract agency will be debited to contractor and the value of the work done or executed through the new contractor shall be credited to the contractor in all respects and in the same manner and at the same rates as if it had been carried out by the contractor under the terms of his contract. This certificate of the Executive Engineer as to all the cost of the work and other expenses incurred as aforesaid for or in getting the unexecuted work done by the new contractor and as to the value of the work done by the new contractor and as to the value of the work so done shall be final and conclusive against contractor.
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In case the contract shall be rescinded under clause (a) above, the contractor shall not be entitled to recover or be paid any sum for any work thereto actually performed by him under this contract unless and until the Executive Engineer shall have certified in writing the performance of such work and the amount payable to him in respect thereof he shall only be entitled to be paid the amount so certified. In the event of either of the courses referred to in clause (b) or (c) being adopted and the cost of the work executed departmentally or through a new contractor and other allied expenses exceeding the value of such work credited to the contractor, the amount of excess value shall be deducted from any money due to the contractor by the Govt. under the contract or otherwise, howsoever or from his security deposit or the sale proceeds thereof provided howsoever, that the contractor shall have no claim against government even if certified value of the work done departmentally or through a new contract except the certified cost of such work and allied expenses provided always that whichever of the three courses mentioned in clause (a) (b) or (c) is adopted by the Executive Engineer, the contractor shall have no claim to compensation for any loss sustained by reason of him having no claim to compensation for any materials, or entered into engagement or made any advance on account of or with a view of the execution of the work or the performance of contract.

Action when process of particular work is unsatisfactory

Clause 4 : If the progress of any particular portion of the work is unsatisfactory the Executive Engineer shall not with standing that the general progress of the work is satisfactory in accordance with clause 2 be entitled to take action under clause 3 (b) after giving the contractor 10 days notice in writing and the contractor will have no claim for compensation for any loss sustained by him owing to such action.

Contractor remains liable to pay compensation if action not taken under clause 3.

Clause 5: In any case in which any of the powers conferred upon the Executive Engineer by clause 3 and 4 hereof shall have become exercisable and the same shall not have been exercised, the non-exercise thereof shall not constitute a waiver of any of the conditions hereof and such powers shall not-with standing be exercisable in any future case of default by the contractor for which by under any clause or clauses hereof he is declared liable to pay compensation amounting to the whole of his security deposit and the liability of the contractor for past and future compensation shall remain unaffected. In the event of the Executive Engineer taking action under sub-clause (a) or (c) of clause (3) he may, if he so desires, take possession of all or any tool plant, materials and stores in or upon the works or the site thereof or belonging to the contractor or procured by him and intended to be used for the execution of the works or the site thereof or belonging to the contractor, or procured by him and intended to be used for the execution of the work or any part thereof, paying or allowing, for the same in account at the contract rates, or in the case of contract rates not being applicable at current market rates, to be certified by the Executive Engineer whose certificate there of shall be final. In the alternative the Executive Engineer may, by notice in writing to the contractor or to his clerk of the works, foreman or other authorised agent require him to remove such tools, plant materials or stores from the premises within a time to be specified in such notice and in the event of contractor failing to comply with any such requisition the Executive Engineer may remove them at the contractor's expenses or sale them by auction or private sale, at risk and account of the contractor in all such removal and the amount of the proceeds and expenses of any such sale be final

Power to take possession of or required removal of or all contractor's plant

and conclusive against the contractor.

Extension of
time limit.

Clause 6: If the contractor desires an extension of the time for completion of the work on the ground of his having unavoidable hindering in its execution or on the other ground, he shall apply in writing to the Executive Engineer before the expiration of the period stipulated in the tender or before the expiration of 30 days from the date to which he was hindered as aforesaid or on which the cause for asking for extension occurred, whichever is earlier and the Executive Engineer may, if in his opinion there are reasonable grounds for granting an extension, grant such extension as he thinks necessary or proper. The decision of the Executive Engineer in this matter shall be final.

Clause 6 A : In the case of delay in handing over the land required for the work due to unforeseen cause, the contractor shall not be entitled for any compensation whatsoever from the Government on the ground that the machinery or the labour was idle for a certain period. Contractor may, however, apply for extension of time limit which may be granted on the merit of the case.

**Final
Certificate**

Clause 7 : On completion of the work the contractor shall be furnished with a certificate by the Executive Engineer (Hereinafter called the Engineer-in-charge) in such completion but no certificate shall be given nor shall the work be considered to be complete until the contractor shall have removed from the premises on which the work shall have been executed, all scaffolding, surplus materials and rubbish and shall have cleaned of the dirt from all wood work, doors, floors or other parts of any building in or upon which the work has been executed or on which he may have had possession for the purpose of executing the work or until the work shall have been measured by the Engineer-in-charge or where the measurements have been taken by his subordinates until they have received the approval of the Engineer-in-charge the said measurement being binding and conclusive against

the contractor. If the contractor fails to comply with the requirement of the clause as to the removal of scaffolding, surplus material and rubbish and cleaning of dirt on or before the date fixed for the completion of the work. The Executive-in-charge may at the expense of the contractor, remove such scaffolding, surplus materials and rubbish and dispose off the same as he thinks fit and clean of such dirt as aforesaid and the contractor shall forthwith pay the amount of all expenses so incurred but shall have no claim in respect of any such scaffolding or surplus materials as aforesaid except for any sum actually realized by the sale thereof.

**Payments on
intermediate
certificate to
be regarded
as advance.**

Clause 8: No payment shall be made for any work estimated to cost less than Rs. One thousand till after the whole of the said work shall have been completed and a certificate of completion given. But in the case of the works estimated to cost more than Rs. One thousand, the contractor shall not, on submitting a monthly bill thereon, be entitled to receive payment proportionate to the part of the work then approved and passed by the Engineer-in-charge whose certificate of such approval and passing of the sum payable shall be final and conclusive against the contractor. All such intermediate payment shall be regarded as payment by way of advance against the final payment only and not preclude the Engineer-in-charge from requiring any bad,

unsound, imperfect or unskillful work to be removed and taken away and reconstructed or rejected, nor shall any such payment be considered as an admission of the due performance of the contractor or any part thereof, in any respect of the occurring of any claim, nor shall it conclude, determine or affect in any way the powers of the Engineer-in-charge as to final settlement and adjustment of the accounts or otherwise or in any other way vary or affect the contract. The final bill shall be submitted by the Contractor within one months of the date fixed for the completion of the work otherwise the Engineer-in-charge's certificate of the measurement and of the total amount payable for the work shall be final and binding on all parties.

Payment at reduced rates on account of items of work not accepted as completed to be at the discretion of the Engineer in charge.

Clause 9: The rates for several items of work estimated to cost more than Rs. One thousand agreed to within shall be valid only when the item concerned is accepted as having been completed fully in accordance with the sanctioned specifications. In case where the items of work are not accepted as so completed the Engineer-in-charge may make payment on account of such items at such reduced rates as he may consider reasonable in preparation of final or on account bills.

Bill to be submitted monthly

Clause 10 : A bill shall be submitted by the contractor each month on or before the date fixed by the Engineer-in-charge for all work executed submitted in the previous month, and the Engineer-in-charge shall take or cause to be taken the requisite measurement for the purpose of having the same verified and the claim so far as it is admissible shall be adjusted, if possible within ten days from the presentation of the bill. If the contractor does not submit the bill within time fixed as aforesaid, the Engineer-in-charge may depute a subordinate to measure up the said work in the presence of the contractor or his duly authorised agent whose counter signature to the measurement list shall be sufficient warrant and the Engineer-in-charge may prepare a bill from such list which shall be binding on the contractor in all respects.

Bill to be on printed form.

Clause 11: The contractor shall submit all bills on the printed forms to be had on application at the office of the Engineer-in-charge. The charges to be made in the bills shall always be entered at the rates specified in the tender or in the case of any extra work ordered in pursuance of these conditions and not mentioned or provided for in the tender, at the rate hereinafter provided for such work.

Stores supplied by Government.

Clause 12: If the specification or estimate of the work provides for the use of any special description of materials to be supplied from the P.W.D. store or if it is required that the contractor shall use certain stores to be provided by the Engineer-in-charge (such material and stores, and the prices to be charged therefore as hereinafter mentioned being so far as practicable for the convenience of the contractor but not so in any way to control the meaning or effect of this construction specified in the schedule or memorandum hereto annexed) the contractor shall be supplied with such materials and stores as may be required from time to time to be used by him for the purpose of the construction only, and values of the full quantity of materials and stores as

supplied shall be set off or reduced from any sums then due, or here after to become due to the contractor under the contract or otherwise or from the security deposits, or the proceeds of sale thereof, if the deposit is held in Government, and shall on no account be removed from the site of the work and shall at all times be open to inspection by the Engineer-in-charge. Any such material unused and is perfectly in good condition at the time of completion or determination of the contract shall be returned to the Public Works Department stores, if the Engineer-in-charge so requires by a notice in writing given under his hand, but the contractor shall not be entitled to return any such materials except with such consent and he shall have no claim for compensation on account of any such material supplied to him as aforesaid but remaining unused by him or for any wastage into damage thereto.

**Store
Material**

Clause 12 A : All store of contractor material such as cement ,steel Bitumen etc Supplied by the contractor at his own cost should be kept by the contractor under lock and key and will be accessible for inspection by the Executive Engineer or his agent at all times

**Work to be
executed in
accordance
with
specification
, drawing,
orders etc.**

Clause 13 : The contractor shall execute the whole and every part of the work like manner and both as regards materials and every other respect in strict accordance with specifications. The contractor shall also confirm exactly fully and faithfully to the designs, drawings and instructions in writing relating to the work signed by the Engineer-in-charge and lodged in his office and to which the contractor shall be entitled to have access for the purpose of inspection at such office or at the site of work during office hours. The contractor will be entitled to receive three sets of contracts drawings and working drawings as well as one certified copy of the accepted tender along with the work order free of cost. Further copies of the contract drawings and working drawings, if required by him, shall be supplied at the rate of Rs. 500 /- per set of contact drawing and Rs. 150/- per working drawing except where otherwise specified.

**Alteration in
Specification
s and
designs not
to invalidate
contract.**

Clause 14: The Engineer-in-charge shall have power to make any alterations in, or additions to, the original specifications, drawings, designs and instructions, that may appear to him to be necessary or advisable during the progress of the work and the contractor shall be bound to carry out the work in accordance with any instructions in this connection which may be given to him in writing signed by the Engineer-in-charge and such alteration shall not invalidate the contract, and any additional work which the contractor may be directed to do in the manner above specified as a part of the work shall be carried out by the contractor in the same conditions in all respects on which he agreed to the main work and at the same rates as per specified in the tender for the main work. And if the additional or altered work, includes any class of work for which no rate is specified in this contract, then such class of work shall be carried out at the rates entered in Schedule of Rates of the division or at the mutually agreed upon between the Engineer-in-charge and the contractor, whichever are lower. If the additional or altered work, for which no rate is entered in the schedule of rates of the division, is ordered to be carried out before the rates are agreed upon, then the contractor shall within seven days of the date of receipt by him of order to carry out work inform the Engineer-in-charge of the rate which it is his intention to charge for such class of work, and if the Engineer-in-charge does not agree to this rate he shall by notice in writing be at liberty to cancel his

**Rate for
work not
entered in
estimate or
schedule of
rates of the
district.**

order to carry out such class of work and arrange to carry it out in such manner as he may consider advisable, provided always that if the contractor shall commence work or incurs any expenditure in regard thereto before the rate shall have been determined as lastly herein-before mentioned then in such case he shall only be entitled to be paid in-respect if the work carried out or expenditure incurred by him prior to the date of the determination of the rate as aforesaid according to such rate or rates as shall be fixed by the Engineer-in-charge. In the event of a dispute the decision of the Superintending Engineer of the Circle will be final.

Where however, the work is to be executed according to the designs, drawings, and specification recommended by the contractor and accepted by the competent authority the alterations above referred to shall be within the scope of such designs, drawing and specifications to the tender.

Extension of time in consequence of addition or alteration.

The time limit for the completion of work shall be extended in the proportion that the increase in its cost occasioned by alterations or additions bears to the cost of the original contract work and the certificate of the Engineer-in-charge as to such proportion shall be conclusive.

No claim to any payment or compensation for alteration in or restriction of work.

Clause 15 : (1) If at any time after the execution of the contract documents, the Engineer in charge shall for any reason whatsoever (other than default on the part of the contractor and for which Government is entitled to rescind the contract) desire that the whole or any part of the work specified in the tender should be suspended for any period or that the whole or part of the work should not be carried out at all he shall give to the contractor a notice in writing of such desire and upon the receipt of such notice the contractor shall forthwith suspend or stop the work wholly or in part as required, after having due regard to the appropriate state at which the work should be stopped or suspended so as not to cause any damage or injury to the work already done or endanger the safety thereof provided the decision of the Engineer in charge as to the stage at which the work or any part or it could be or could have been safely stopped or suspended shall be final and conclusive against the contractor. The contractor shall have no claim to any payment or compensation what-so-ever by reason of or in pursuance of any notice as aforesaid on account of any suspension, stoppage or curtailment except to the extent specified here-in-after.

(2) Where the total suspension of the work ordered as aforesaid continued for a continuous period exceeding 90 days the contractor shall be at liberty to withdraw from the contractual obligations under the contract so far as it pertains to the unexecuted part of the work by giving a 10 days prior notice in writing to the Engineer in charge , within 30 days of the expiry of the said period of 90 days of such Intention and requiring the Engineer in charge to record the final measurements of the work already done and to pay the final bill. Upon given such notice, the contractor shall be deemed to have been discharged from his obligation to complete the remaining unexecuted work under this contract. On receipt of such notice the Engineer shall proceed to complete the measurement and make such payment as may be finally due to the contractor within a period of 90 days from the receipt of such notice in respect of the work already done by the contractor. Such payment shall not in any manner prejudice the right of the contractor to any further compensation under the remaining provision of this clause.

(3) Where the Engineer in charge requires the contractor to suspend the work for a period in excess of 30 days at anytime or 60 days in the aggregate, the contractor shall be entitled to apply to the Engineer in charge within 30 days of the resumption of the work after such suspension for payment of compensation to the extent of pecuniary loss suffered by him in respect of working machinery rendered idle on the site or on account of his having, had to pay the salary or wages of labour engaged by him during the said period of suspension. Provided always that, the contractor shall not be entitled to any claim in respect of any such working machinery, salary or wages for the first 30 days whether consecutive or in the aggregate of such suspension or in respect of any suspension what-so-ever occasioned by unsatisfactory work or any other default on his part. The decision of the Engineer in charge in this regard shall be final and conclusive against the contractor.

(4) In the event of

(Any total stoppage of work on notice from the Engineer in charge
i under sub-clause (1).
)

(Withdrawal by the contractor from the contractual obligation to
i complete the remaining unexecuted work under sub-clause (2) on
i account of continued suspension of work for a period exceeding 90
) days.

(Curtailment in the quantity of any item or items originally tendered
i on account of any alteration, omission or substitution in the
i specifications, drawings, designs or instructions under clause 14(1)
i where such curtailment exceeds 25% in quantity and the value of the
) quantity curtailed beyond 25% at the rate for the items specified in
the tender is more than Rs. Five Thousand (Rs.5000/-)

It shall be open to the contractor within 90 days from the service of (i) the notice of stoppage of work or (ii) the notice of withdrawal from the contractual obligation under the contract on account of the continued suspension of the work (iii) notice under clause 14(1) resulting such curtailment or produce to the Engineer in charge satisfactory documentary evidence, that he had purchased or agreed to purchase material for use in the contracted work, before receipt by him of the notice of stoppage, suspension or curtailment and require the Government to take over on payment such material at the rates determined by the Engineer, provided however, such rates shall in no case exceed the rates at which the same were acquired by the contractor. The Government shall thereafter take over the material so offered, provided the quantities offered are not in excess of the requirement of the unexecuted work as specified in the accepted tender and are of quality and specification approved by the Engineer in charge.

Time limit
for
unforeseen
claims.

Clause 16: Under no circumstance what so ever shall the contractor be entitled to any compensation from Government on any account unless the contractor shall have submitted claim in writing to the Engineer -in Charge within one month of the cause of such claim occurring.

Action and compensation payable in case of bad work.

Clause 17: If any time before the security deposit or any part thereof is refunded to the contractor it shall appear to the Engineer -in Charge or his subordinate in-charge or the work, that any work has been executed with unsound, imperfect unskilled workmanship or with materials of inferior quality, or that any materials or articles provided by him for the execution of the work are unsound or of a quality inferior to that contracted for or are otherwise not in accordance with the contractor, it shall be lawful for the Engineer-in-charge to intimate this fact in writing to the contractor and then notwithstanding the fact that the work, materials or articles complained of may have been inadvertently passed, certified and paid for, the contractor shall be bound forthwith to rectify, or remove and reconstruct the work so specified in whole or in part, as the case may require or if so required, shall remove the materials or articles so specified and provided other proper and suitable materials or article at his own charge and cost and in the event of his failing to do so within a period to be specified by the Engineer-in-charge in the written intimation aforesaid, the contractor shall be liable to pay compensation at the rate of 1% on the amount of the estimate for every day not exceeding 10 days, during which the failure so continues and in the case of any such failure, the Engineer-in-charge may rectify or remove and re-execute the work or remove and replace the materials or article complained of, as the case may be, at the risk and expense in all respects of the contractor. Should the Engineer-in-charge consider that any such inferior work or materials as described above may be accepted or made use of it shall be within his discretion to accept the same at such reduced rates as he may fix therefor.

Work to be open to inspection.

Clause 18: All works under or in course of execution or executed in pursuance of the contract shall at all times be open to the inspection to inspection and supervision of the Engineer-in-charge and his subordinates and the contractor shall at all times during the usual working hours, and at all other times at which reasonable notice of the intention of the Engineer-in-charge of his subordinates to visit the works shall have been given to the contractor, either himself be present to receive order and instructions, or have a responsible agent duly accredited in writing, present for that purpose. Orders given to the contractor's duly authorised agent shall be considered to have the same force and effect as if they had been given to the contractor himself.

Contractor or responsible agent to be present.

Notice to be given before the work is covered up.

Clause 19 : The contractor shall give not less than 5 days notice in writing to the Engineer-in-charge or his subordinates in charge of the work before covering up or otherwise placing beyond the reach of measurement any work in order that the same may be measured and correct dimensions hereof taken before the same is so covered up or placed beyond the reach of measurement and shall not cover up or placed beyond the reach of measurement any work without the consent in writing of the Engineer-in-charge or his subordinate in charge of the work, and if any work shall be covered up or placed beyond the reach of measurement without such notice having been given or consent obtained the same shall be uncovered at the bidders expense and in default thereof payment or allowance shall be made for such work or for the materials with which the same was executed.

Contractor liable for damage done and for imperfection.

Clause 20 : If during the period of **12 (Twelve)** months from the date of completion as certified by the Engineer-in-charge pursuant to the clause 7 of the contract or **12 (Twelve) months** after commissioning of the work whichever is earlier in the opinion of the Engineer-In- charge , the said work is defective in any manner whatsoever, the contractor shall forthwith on receipt on the notice in that behalf from the Engineer-In- charge, duly commence execution and completely carry out at his cost in every respect all the work that may be necessary for rectifying and setting right the defects specified therein including dismantling and reconstruction of unsafe portions strictly in accordance with and in the manner prescribed and under the supervision of the Engineer-In- charge. In the event of the contractor failing and neglecting to commence execution of the said rectification work within the period prescribed therefore in the said notice the Engineer-In- charge may get the same executed and carried out departmentally or by other agency at the risk on account and at the cost of the contractor. The contractor shall forthwith on demand pay to the government the amount of such costs, charges and expenses sustained or incurred by the government of which the certificate of the Engineer-In- charge shall be final and binding on the contractor. Such costs, charges and expense shall be deemed to be arrears of land revenue and in the event of contractor failing or neglecting to pay the same on demand as aforesaid without prejudice to any other rights and remedies of the government, the same may be recovered from the contractor as arrears of land revenue. The government shall also be entitled to deduct the same from any amount which may then be payable or which may thereafter becomes payable by government to the contractor either-in-respect of the said work or any other work whatsoever, or from the amount of the security deposit retained by government.

Contractors to supply plant, ladders, scaffolding etc.

Clause 21 : The contractor shall supply at his own cost all materials (except such special material if any) as may be supplied from the Public Works Department Stores, in accordance with the contract, plant, tools, appliances, implements, ladders, cordage, tackle, scaffolding and any temporary works which may be required for the proper execution of the work, in the original, altered or substituted form, whether included in the specification or other documents

forming part of the contract or referred to in these conditions or not and which may be necessary for the purpose of satisfying or complying with requirements of the Engineer-in-charge as to any matter on which

And is liable for damages arising from non-provisions of lights, fencing etc.

under these Conditions he is entitled to be satisfied, or which be entitled to require together with carriage therefor, to and from the work. The contractor shall also supply without charge the requisite number of persons with the means and materials necessary for the purpose of setting out works and counting, weighing and assisting in the measurement or examination at any time and from time to time of the work or materials. Failing this the same may be provided by the Engineer-in-charge at the expense of the contractor and the expenses may be deducted from any money due to the contractor under the contract or from his security deposit or the proceeds of sale thereof or of sufficient portion thereof. The contractor shall provide all necessary fencing and lights required to protect the Public from accident and shall also be bound to bear the expenses of defense every suit, action or other legal proceedings at law that may be brought by any person for injury sustained owing to the neglect of the above precautions, and to pay damages and cost such person or which may with the consent of the contractor be paid in compromising any claim by any such person.

Clause 21A: The contractor shall provide suitable scaffolds and working platforms, gangways, and stairways and shall comply with the following regulations in connection therewith:

- a Suitable scaffolds shall be provided for workmen for all work
) that cannot be safely done from a ladder or by other means.

- b A scaffold shall not be constructed, taken down substantially
) altered except -
 - i Under the supervision of a competent and responsible.
) Person, and
 - i As far as possible by competent workers possessing
) adequate experience in this kind of work.

- c All scaffolds and appliance connected therewith and all leaders
) shall -
 - i Be of sound material
)
 - i Be of adequate strength having regard to the loads and
) strains to which they will be subjected, and

- i Be maintained in proper condition.
 - i
 - i
 -)
- d Scaffolds shall be so constructed that no part there of can be
 -) displaced in consequence of normal use.
- e Scaffolds shall not be overloaded and as far as practicable the
 -) load shall be evenly distributed.
- f Before installing lifting gear on scaffolds special precaution
 -) shall be taken to ensure the strength and stability of the scaffolds.
- g Scaffolds shall be periodically inspected by a competent
 -) person.
- h Before allowing a scaffold to be used by his workmen, the
 -) contractor shall check whether the scaffold has been erected by his workmen or not take steps and to ensure that it complies fully with the regulations herein specified.
- i Working platforms, gangways, and stairways shall -
 -)
 - i Be so constructed that no part thereof can sag unduly or
 -) unequally.
 - i Be so constructed and maintained having regard to the
 - i prevailing conditions as to reduce as far as practicable
 -) risks of persons tripping or slipping, and
- j In the case of working platforms, gangways, working places
 -) and stairways at a height exceeding 3 meters.
 - i Every working platform and every gangways shall have
 -) to be closely boarded unless other adequate measures are taken to ensure safety.
 - i Every working platform, gangways, working places,
 - i stairway shall be suitably fenced.
 -)
- k Every opening in the floor of the building or in working
 -) platform shall except for the time and to the extent required to allow the access or persons or the transport or shifting of materials be provided with suitably means to prevent the fall of persons or material.
- l When persons are employed on a roof where there is danger of
 -) falling from a height exceeding 3 meters suitable precaution shall be taken to prevent the fall of persons or materials.

- m) Suitable precautions shall be taken to prevent persons being struck by articles, which might fall from scaffolds or other working place. Safe means of access shall be provided to all working platforms and other working places.
- n) Safe means of access shall be provided to all working platform and other working places.

Clause 21 B : The contractor shall comply with the following regulations as regards the Hoisting Appliances to be used by him.

- a) Hoisting machines and tackle, including their attachment, anchorage's and sports shall -
 - i) Be of good mechanical construction, sound material and adequate strength and free from patent defect, and
 - i) Be kept in good repair and in good working order.
 - i)
- b) Every rope used in hoisting or lowering material or as a means of suspension shall be of suitable quality and adequate strength and free from patent defect.
- c) Hoisting machines and tackle shall be examined and adequately tested after erected on the site and before use and be reexamined in position at intervals to be prescribed by the government.
- d) Every chain, ring, hook, shackle, swivel and pulley block used in hoisting or lowering of materials or as a means of suspension shall be periodically examined.
- e) Every crane driver or hoisting appliance operator shall be property qualified.
- f) No person who is below the age of 21 years shall be in control of any hoisting machine, including any scaffolds, which give signals to the operator.
- g) In the case of every hoisting machine and of every chain, ring, hook, shackle, swivel and pulley block used in hoisting or lowering or as a means of suspension the safe working load shall be ascertained by adequate.
- h) Every hoisting machine and all gear referred to in the preceding regulation shall be plainly marked with the safe working load.
- i) In the case of hoisting machine having a variable safe working load, each safe working load and condition under which it is applicable shall be clearly indicated.
- j) No part of any hoisting machine or of any gear referred to in regulation of above shall be loaded beyond the safe working load except for the purpose of testing.

	k) Motors, gearing transmissions, electric wiring and other dangerous part of hoisting appliance shall be provided with efficient safe guards. l) Hoisting appliances shall be provided with such means as will reduce to a minimum risk of the accidental descent of the load. m) Adequate precautions shall be taken to reduce to a minimum the risk of any part of a suspended load becoming accidentally displaced.
Measure for prevention of fire.	Clause 22: The contractor shall not set fire to any standing jungle, trees, bush wood or grass without a written permit from the Engineer in charge. When such permit is given and also in all cases when destroying cut or dug up trees, bush wood grass etc. by fire, the contractor shall take necessary measures to prevent such fire spreading to or otherwise damaging surrounding property. The contractor shall make his own arrangement for drinking water for the labour employed by him.
Liability of contractors for any damage done in or outside work area.	Clause 23: Compensation for all damage done intentionally or unintentionally by contractors labour whether in or beyond the limits of contractor for government property including any damage caused by the spreading of any damage fire mentioned in clause 22 shall be estimated by the Engineer-in-charge or such other officer as he may appoint and the estimates of the Engineer-in-charge subject to the decision of the Superintending Engineer on appeal shall be final and the contractor shall be bound to pay the amount of the assessed compensation on demand, failing which the same will be recovered from the contractor as damages in the manner prescribed in clause 1 or deducted by the Engineer-in-charge from any sum that may be due to or become due from government to the contractor under this contract or otherwise. The contractor shall bear the expenses of defending any action or other legal proceeding that may be brought by any person for injury sustained by him owing to neglect of precautions to prevent the spread of fire and he shall also pay any damages and cost that may be awarded by the court in consequence.
Employment of female labour	Clause 24: The employment of female labourers on works in the neighborhood of soldier's barracks should be avoided as far as possible.
Work on Sunday	Clause 25: No work shall be done on a Sunday without the sanction in writing of the Engineer-in-charge.

Work not to be sublet.
Contract may rescind and security deposit forfeited for subletting it without approval or for bribing a public officer or if contractor becomes insolvent.

Clause 26: The contract shall not be assigned or sublet without the written approval of the Engineer-in-charge. And if the contractor shall assign or sublet his contract, or attempt so to do, or become insolvent or commence any proceedings to be adjudicated and insolvent or make any composition with his creditors, or attempt so to do the Engineer-in-charge may be notice in writing rescind the contract. Also if any bribe, gratuity, gift, loan, perquisite, reward or advantage, pecuniary or otherwise, shall either directly or indirectly be given, promised by the contractor or any of his servants or agents to any public officer or person in the employment of government in any way relating to his office or employment, or if any such officer or person shall become in any way directly or indirectly interested in the contract, the Engineer-in-charge may be giving notice in writing rescind the contract. In the event of a contract being rescinded, the security deposit of the contractor shall thereupon stand forfeited and be absolutely at the disposal of the Government and same consequences shall as ensure as if the contract has been rescinded under clause 3 hereof and in addition the contractor shall not be entitled to recover or be paid for any work therefore actually performed under the contract.

Sum payable by way of compensation to be considered as reasonable compensation without reference to actual loss.

Clause 27 : All sum payable by a contractor by way of compensation under any of these condition shall be considered as a reasonable compensation to be applied of the use of Government without reference to the actual loss or damage sustained and whether any damage has or has not been sustained.

Changes in the constitution of the firm to be notified.

Clause 28: In the case of a tender by partners any change in the construction of a firm shall be forthwith notified by the contractor to the Engineer-in-charge for his information.

Clause 29: All works to be executed under the contact shall be executed under the direction and subject to the approval in all respects of the Superintending Engineer of the Circle for the time being, who shall be entitled to direct at what point or points and in what manner they are commenced and from time to time carried out.

Work to be under direction and control of Superintending Engineer.

Clause 30 (1): Except where otherwise specified in the contract and subject to the power delegated to him by Government under the code rules then in force, the decision of the Superintending Engineer of the Circle for the time being shall be final, conclusive and binding on all parties to the contract upon all questions relating to the meaning of the specifications ,designs ,drawings and instructions herein before mentioned and as to the quality of the workmanship or material used on the work or as to any other question, claim, right, matter or things whatsoever, in any way arising out of or relating to the contract designs, drawing, specifications, estimates, instructions , orders of these conditions or otherwise concerning the works or the execution or failure to execute the same whether arising during the progress of the work or after the completion or abandonment thereof.

(2) The contractor may within thirty days of receipt by him of any order passed by the Superintending Engineer of the Circle as aforesaid appeal against it to the Chief Engineer concerned with the contract, work or project provided that -

(The accepted value of the contract exceeds Rs. 10 lacks (Rupees Ten
a Lakhs)
)

(Amount of claim is not less than Rs. 1.00 lakh (Rupees one lakh)
b
)

(3) If the contractor is not satisfied with the order passed by the Chief Engineer as aforesaid the contractor may within thirty days of receipt by him of any such order, appeal against it to the concerned Secretary, Public Works Department who, if convinced the prima-facie the contractor's claim rejected by the Superintending Engineer / Chief Engineer is not frivolous and that there is some substance in the claim of the contractor as would merit a detailed examination and decision by the Standing Committee, shall put up to the Standing Committee at Government level for suitable decision.

Store of
European or
American
manufacture
s to be
obtained
from the
Government

Clause 31: The contractor shall obtain from the P.W.D. stores all stores and article of European or American manufacture which may be required for the work, or any part of the work or in making up any article required therefore or in connection therewith unless he has obtained permission in writing from the Engineer-in-charge to obtain such stores and articles elsewhere. The value of such stores and articles as may be supplied to the contractor by Engineer-in-charge will be debited to the contractor in his account at the rates shown in the Schedule in form "A" attached to contract and if they are not entered in the said Schedule, they shall be debited to him at cost price which for the purpose of this contract shall include the cost of carriage and all other expenses whatsoever, which may have to be incurred in obtaining delivery of the same as the stores aforesaid.

Lump sums
in estimates.

Clause 32 : When the estimate on which a tender is made includes lump sumps in respect of parts of the work the contractor shall be entitled to payment in respect of items of work involved or the part of the work in question at the same rates as are payable under this contract for such items, or if part of the work question is not in the opining of the Engineer-in-charge capable of measurement the Engineer-in-charge may at his discretion pay lump sum amount entered in the estimate, and the certificate in writing of the Engineer-in-charge shall be final and conclusive against the contractor with regard to any sum or sums payable to him under the provision of this clause.

Action where
no
specification.

Clause 33: In the case of any class of work for which there is no such specification as in mentioned in Rule-1, such work shall be carried out in accordance with the Divisional specifications, and in the event of there being no Divisional specification, then in such case the work shall be carried out in all respects in accordance with the instruction and requirement of the Engineer-in-charge.

Definition of work.	Clause 34 : The expression 'works' or 'work' where used in these condition shall, unless there be something in the subject or context repugnant to such construction be constructed to mean the work or the work contractor to be executed under or in virtue of the contract, whether temporary or permanent and whether original altered substituted or additional.
Contractor's percentage whether applied to net or gross amount of bill.	Clause 35: The percentage referred to in the tender shall be deducted from / added to the gross amount of the bill before deducting the value of any stock issued.
Quarry fees and royalties	Clause 36: All quarry fees, royalties, Octri dues and ground rent for stacking materials if any, should be paid by the contractor.
Compensation under Workman's Compensation Act.	Clause 37: The contractor shall be responsible for and shall pay compensation to his Workmen payable under the Workmen's compensation Act, 1923 (VIII of 1923), (hereinafter compensation is payable and or paid by Government as principal under the subsection (1) of section 12 of the said Act on behalf of the contractor this shall be recoverable by Government from the contractor under sub section (2) of the said section. Such compensation shall be recovered in the manner laid down in clause 1 above. Clause 37 A: The contractor shall be responsible for and shall pay expenses of providing Medical aid to any workmen who may suffer a bodily injury as a result on an accident. If such expenses are incurred by Government the same shall be recoverable from the contractor forthwith and be deducted without prejudice to any other remedy of Government from any amount due or that may become due to the contractor. Clause 37 B : The contractor shall provide all necessary personal safety equipment and first-aid apparatus available for the use of the persons employed on the site and shall maintain the same in condition suitable for immediate use at any time and shall comply with the following regulation in connection therewith : (a) The worker shall be required to use the equipment so provided by the contractor and the contractor shall take adequate steps to ensure proper use of the equipment by those concerned. (b) When work carried on in proximity to any place where there is no risk of drawing, all necessary equipment's shall be provided and kept ready for use and all necessary steps shall be taken prompt rescue of any person in danger. (c) Adequate provision shall be made for prompt first-aid treatment for all injuries likely to be sustained during the course of the work.

Clause 37 C: The contractor shall duly comply with the provision of “The Apprentices Act 1961 (III of 1961) the rules made there under and the orders that may be issued from time under the said Act and the said Rules and on his failure or neglect to do so he shall be subject to all the liabilities and penalties provided by the said Act and said Rules”.

Claim for quantity of works entered in the tender or estimate.

~~**Clause 38: (1)** Quantities in respect of the several items shown in the tender are approximate and no revision in the tendered rates shall be permitted in respect of any of the items so long as, subject to any special provision contained in the specification prescribed a different percentage of permissible variation, the quantity of the items does not exceed the tender quantity by more than 25% and so long as the value of excess quantity beyond this limit at the rate of the items specified in the tender, is not more than Rs. 34,000/-~~

~~**(2)** The contractor shall if ordered in writing by the Engineer in charge, so to do also carry out any quantities in excess of the limit mentioned in Sub Clause (1) hereof on the same conditions as and in accordance with the specifications in the tender and at the rates (i) derived from the rates entered in the current schedule of rates and in the absence of such rates (ii) at the rate prevailing in the market, the said rates being increased or decreased as the case may be, by the percentage which the total tendered amount bears to the estimated cost of the work as put to tender based upon the Schedule rates of applicable to the year in which the tenders were invited (for the purpose of operation of this clause, this cost shall be taken to Rs./-~~

~~**(3)** Claim arising out of reduction in the tendered quantity of any item beyond 25 percent will be governed by the provisions of clause 15 only when the amount reduction beyond 25% at the rate of the item specified in the tender is more than Rs. 5000/-~~

Employment of female or other labour.

Clause 39: The contractor shall employ any female, convict or other labour of a particular kind of class if ordered in writing to do so by the Engineer-in-charge.

Claim for compensation for delay in starting work

Clause 40 : No compensation shall be allowed for any delay caused in the starting of the work on account of acquisition of land and in the case of the clearance work of any delay in according sanction to estimates.

Claim for compensation for delay in the execution of work

Clause 41: No compensation shall be allowed for any delay in execution of the work on account of water standing in borrow pits or compartments. The rates are inclusive for hard or cracked soil excavation in mud, subsoil water or water standing in borrow pits and no claim for an extra rate shall be entertained unless otherwise expressly specified.

Entering upon or commencing any portion of work.

Clause 42: The contractor shall not enter upon or commence any portion of work except with the written authority and instructions of the Engineer-in-charge or of his subordinate in charge of the work failing such authority the contractor shall have no claim to ask for measurements of or payment for work.

Minimum age of

Clause 43: (i) No contractor shall employ any person who is under the age of 18 years.

persons employed, the employment of donkey and/or other animals and the payment of fair wages.

(ii) No contractor shall employ donkeys or other animals with breeching of string or thin rope. The breeching must be at least 3 inches wide and should be of tape (Newar)

(iii) No animals suffering from sores, lameness or emaciation or which is immature shall be employed on the work.

(iv) The Engineer-in-charge or his agent authorised to remove from the work any person or animal found working which does not satisfy these conditions and no responsibilities shall be accepted by the Government for any delay caused in the completion of the work by such removal.

(v) The contractor shall pay fair and reasonable wages to the workmen employed by him in the contract undertaken by him. In the event of any disputes arising between the contractor and his workmen on the grounds that the wages paid are not fair and reasonable the dispute shall be referred without delay to the Executive Engineer who shall decide the same. The decision of the Executive Engineer shall be conclusive and binding on the contractor, but such decision shall not in any way affect the condition in the contract regarding the payment to be made by the Government at the sanctioned tender rates.

(vi) The contractor shall provide drinking water facilities to the workers. Similar amenities shall be provided to the workers engaged on large work in urban areas.

Method of payment.

Clause 44: Payments to contractor shall be made by cheques drawn on any treasury within the Division convenient to them. Provided the amount exceeds Rs. 100/- Amount not exceeding Rs. 100/- will be paid in cash.

Acceptance of conditions compulsory before tendering the work.

Clause 45 : Any contractor who does not accept these conditions shall not be allowed to tender for works.

Employment of scarcity labour.

Clause 46: If Government declares a state of scarcity or famine to exist in any village situated within 1 Kms. of work, the contractor shall employ upon such parts of the work as suitable for unskilled labour any person certified to him by the Engineer in charge or by any person to whom Executive Engineer may have delegated this duty in writing to be in need of relief and shall be bound to pay to such persons wages not below minimum which may arise in connection with the implementation of this clause shall be decided by the Executive Engineer whose decision shall be final and binding on the contractor.

Clause 47: The price quoted by the contractors shall not in any case exceed the control price, if any, fixed by Government or reasonable price which is permissible for him to charge as private purchaser for the same class and description of goods under the provisions of Hoarding and profiteering Prevention Ordinance 1984 as amended from time to time. If the price quoted exceeds the controlled price or the price permissible under Hoarding and Profiteering Prevention Ordinance, the contractor will specifically mention this fact in his tender along with reasons for quoting such higher price. The purchaser at his tender along with reasons for quoting such higher price. The purchaser at his discretion will in such higher price. The purchaser at his

discretion will in such case exercises the right of revising the price at any stage so as to confirm with the controlled price on the permissible under the Hoarding and Profiteering Ordinance. This discretion will be exercised without prejudice to any other action that may be taken against the contractor.

Clause 48: The rates to be quoted by the contractor must be inclusive of sales tax No extra payment on this account will be made to the contractor

Clause 48 A : The contractors are bound to pay to the labourers wages according to the Minimum Wages Act 1948 applicable to the Zone in accordance with the order issued in Government P.W.D./Circular No. MWA/1063, dated 07/12/1968.

Clause 49: In case of materials that remains surplus with the contractor for those issued for the work contracted from the date of ascertainment of the materials being surplus be taken as the date of sale for the purpose of sales tax and the sale tax will be recovered on such sale.

Clause 50: The contractor shall employ the unskilled labour to be employed by him on the said work only from locally available labours and shall give preference to those persons enrolled under Maharashtra Government Employment and Self Employment Department Scheme. Provided, however, that if the required unskilled laboured are not available locally, the contractor shall in the first instance employ such number of persons as is available and thereafter may with previous permission, in writing of the Engineer-in-charge of the said work obtained the rest of requirement of unskilled the labour from outside the above scheme.

Clause 51: Deleted

Clause 52: All amount whatsoever which the contractor is liable to pay to the Government in connection with the execution of the work including the amount payable in respect of (1) Material and / or stores supplied / issued hereunder by the Government to the contractor, (2) Hire charges in-respect of heavy plant machinery and equipment given on hire by the Government to the contractor, for execution by him of the work and / or on which the advance have been given by the Government to the contractor shall be deemed to be arrears of the lands revenue and the Government may without prejudice to any other rights and remedies of the Government recover the same from the contractor as arrears of land revenue.

Clause 53: The contractor shall duly comply with all the provisions of the contract labour (Regulation and Abolition) Act 1970. (37 of 1970) and the Maharashtra Contract Labour (Regulation and Abolition) Rules 1971 as amended from time to time and all other relevant statutes and statutory provision concerning payment of wages particularly to workmen employed by the contractor and working on the site of the work. In particular the Contractor shall pay wages to each worker employed by him on the site of the work at the rates prescribed under the Maharashtra Contract Labour (Regulation and Abolition) Rules 1971. If the contractor fails or neglects to pay wages at the said rates or make short payment and the Government makes such payment of wages in full or part thereof less paid by the contractor, as the case may be the amount so paid by the Government to such worker shall be deemed to be arrears of land revenue and the Government shall be entitled to recover the same as such from the contractor or deduct the same from the amount payable by the Government to the contractor hereunder or from any other amounts payable to him by the Government (Minimum Wages Act, as per Government Circular (AT / 1284 / (120) / Building, dated 14/08/1988).

**Price
Variation**

Clause 54 : Deleted

Price Variation

~~Clause 54 : If during the operative period of the contract as defined in condition (i) below, there shall be any variation in the consumer price index (New series) for industrial Workers for CENTRE as per the Labour Gazette published by the Commissioner of Labour, Government of Maharashtra and or in the Wholesale Price index for all commodities, prepared by the office of Economic Advisor, Ministry of Industry, Government of India or in the price of petrol / Oil and Lubricants, and major construction material like bitumen, cement, steel, various type of metal, pipes, etc. then subject to the other conditions mentioned below, price adjustment on account of~~

- ~~(i) — Labour component,~~
- ~~(ii) — Material component,~~
- ~~(iii) — Petrol Oil and Lubricants components~~
- ~~(iv) — Bitumen component~~
- ~~(v). — HYSD & Mild /T.M.T /Structural Steel component~~
- ~~(vi) — Cement component~~

~~Calculated as per formula hereinafter appearing shall be made. Apart from these, no other adjustment shall be made to the contract price for any reasons whatsoever. Component percentage as given below are as of the total cost of work put to tender. Total of Labour, Material & POL components shall be 100 and other components shall be as per actual.~~

		For Work
1)	Labour Component — K ₁	—
2)	Material Component — K ₂	—
3)	POL Component — K ₃	—
	Total	—100 — %
4)	Bitumen Component	Actual
5)	HYSD & Mild /T.M.T /Structural Steel	Nil

Contractor

No of Correction

Executive Engineer 51

	component	
6)	Cement Component	Nil

(1) FORMULA FOR LABOUR COMPONENT:

$$V1 = 0.85 \times P \times \left[\frac{K1}{100} \right] \times \left[\frac{L1 - L0}{L0} \right]$$

WHERE

V1 = Amount of price variation in Rupees to be allowed.

P = Cost of work done during the quarter under consideration Minus the cost of Cement, steel, and bitumen calculated at the basic Star rates as applicable for the tender consumed during the quarter under Consideration. These Star rates are specified here

Star Rates

(1) Cement Rs. 6500.00 per MT

(2) Steel Rs. 48496.00 per MT

K1 = Percentage of Labour Component as indicated above.

L0 = Basic Consumer Price Index (New series) for Aurangabad centre shall be average consumer price index for the quarter preceding the month in which the last date prescribed for receipt of tender falls.

L1 = Average Consumer Price Index for Aurangabad Centre for the quarter under Consideration.

(2) FORMULA FOR MATERIAL COMPONENT:

$$V2 = 0.85 \times P \times \left[\frac{K2}{100} \right] \times \left[\frac{M1 - M0}{M0} \right]$$

WHERE

V2 = Amount of price variation in Rupees to be allowed for material Component

P = Same as worked out for labour component.

K2 = Percentage of Material Component as indicated above

M0 = Basic Wholesale Price Index shall be average wholesale price index for the Quarter preceding the month in which the last date Prescribed for receipt of tender falls.

M1 = Average Wholesale Price Index during the quarter under Consideration

(3) FORMULA FOR PETROL, OIL & LUBRICANT COMPONENT

$$V3 = 0.85 \times P \times \left[\frac{K3}{100} \right] \times \left[\frac{P1 - P0}{P0} \right]$$

WHERE

V3 = Amount of price variation in Rupees to be allowed for POL component

P = Same as worked out for labour component.

K3 = Percentage of Petrol, Oil and Lubricant component

P_0 = Average Price of HSD at Mumbai during the quarter preceding the Month in which the last date prescribed for receipt of tender falls.

P_i = Average Price of HSD at Mumbai during the quarter under consideration

4) FORMULA FOR H.Y.S.D/ MILDSTEEL/ TMT / STRUCTURAL STEEL COMPONENT

$$V_5 = \frac{S_0 (S_{I1} - S_{I0})}{S_{I0}} \times T$$

WHERE

V_5 = Amount of price variation in Rupees to be allowed for HYSD / Mild Steel TMT Steel component.

S_0 = Basic Star rate of TMT Steel in rupees per metric tonne as considered for working out value of P.

S_{I1} = Average Steel Index as per the RBI Bulletin during the quarter under consideration.

S_{I0} = Average of Steel Index as per the RBI Bulletin during the quarter preceding the month in which the last date prescribed for receipt of tender falls.

T = Tonnage of steel used in the permanent works for the quarter under consideration.

(5) FORMULA FOR CEMENT COMPONENT

$$V_6 = \frac{C_0 (C_{I1} - C_{I0})}{C_{I0}} \times T$$

WHERE

V_6 = Amount of price escalation in Rupees to be allowed for cement component.

C_0 = Basic rate of cement in rupees per metric tonne as considered for working out value of P.

C_{I1} = Average cement Index published in the RBI Bulletin for the quarter under consideration.

C_{I0} = Average of cement Index published in the RBI Bulletin for the quarter preceding the month in which to the last date prescribed for receipt of tender falls.

T = Tonnage of cement used in the permanent works for the quarter under consideration.

The following conditions shall prevail:-

i) The operative period of the contract shall mean the period commencing from the date of work order issued to the contractor and ending on the date on which the time allowed for the completion of work specified in the contract for work expires taking into consideration the extension of time if any for completion of the work granted by Engineer in charge under the relevant clause of the conditions of contract in cases other than those where such extension is necessitated on account of default of the contractor. The decision of the Engineer in charge as regards the operative period of the contract shall be final and binding on the contractor. Where any compensation for liquidated damages is levied on the contractor on account of delay in completion or inadequate progress under the

relevant contract provisions the price adjustment amount for the balance work from the date of levy of such compensation shall be worked out by pegging the indices L1, M1, B i P1, CI1, and SI1 to the levels corresponding to the date from which such compensation is levied.

ii) ~~This price variation shall be applicable to this contract in B-1~~

iii) ~~The price variation under this clause shall not be payable for the extra items required to be executed during the completion of the work and also on the excess quantities payable under the provisions of Clause 38 of the contract form B-1 since the rates payable for the extra items or the extra quantities under the clause 38 are to be fixed as per the current DSR or as mutually agreed subject to yearly revision till completion of such work. In other words, when the completion/execution of extra items as well as extra quantities under clause 38 of the contract form B-1 extends beyond the operative date of the DSR, from the rates payable for the same beyond the date shall be revised with reference to the next current DSR prevalent at that time on year to year basis or revised rates, in accordance with mutual agreement thereon, as provided for in the contract, whichever is less.~~

iv) ~~This clause is operative both ways, i.e. if the price variation as calculated above is in on the plus side, payment on account of the price variation shall be allowed to the contractor and if it is on the negative side, the Government shall be entitled to recover the same from the contractor and amount shall be deductible from any amounts due and payable under the contract.~~

v) ~~To the extent that full compensation for any rise or fall in costs to the contractor is not entirely covered by the provision of this or other clauses in the contract, the unit rate and prices included in the contract shall be deemed to include amounts to cover the contingency of such other actual rise or fall in costs.~~

Clause 55 : (A) The anti-malaria and other health measures shall be as directed by the Joint Director (Malaria and Filariasis) of Health Services, Pune.

(B) Contractor shall see that mosquitogenic conditions are not created so as to keep vector population for minimum level.

(C) Contractor shall carry out anti malaria measures in the areas as per guidelines prescribed under National Malaria Eradication Programme as directed by the Joint Director (M & F) of health Services, Pune.

(D) In case of a default in carrying out prescribed anti malaria measures, resulting in increase in malaria incidence the contractor shall be liable to pay to Government the amounts spent by Govt. on anti Malaria measures to control the situation in addition to fine.

(E) Relations with Public Authorities: The contractor shall make sufficient arrangement for draining away the sludge water as well as water coming from the bathing and washing places and shall dispose off this water in such a way so as not to cause any substance. He shall also keep the premise clean by employing sufficient number of sweepers. The contractor shall comply with all rules, regulation bylaws and directions given from time to time by any local or public authority in connection with this work and shall pay fees or charges which are leviable on him without any extra cost to Government. (vide Govt Circular No CST -1086 / CR-243 /Ka Building 2 /Mantralaya Bombay dt 11 September 1987)

Clause 56: The contractor shall comply with all the provision of the Apprentices Act, 1961 and Rules and Orders issued there under from time to time. If he fails to do so, his failure will be breach of the contract and the Superintending Engineer may in his discretion cancel the contract. The contractor shall also be liable for any pecuniary liability arising on account of any violation by him of the provision of the Act

Clause 57: The tender rates are inclusive of all taxes, rates, cesses and are also inclusive of the leviable tax in respect if sale by transfer of property in goods involved in the execution of a work contract under the provision of Rules 58 of Maharashtra Value Added Tax Act-2005. For the purpose of levy of tax.

Clause 58 : In case of material which become surplus with the contractor from those issued for the work contracted from the date of ascertainment of the materials as being surplus will be taken as the date of sale for the purpose of sales tax and sale tax will be recovered on such sale.

Clause 59(1) : QUALITY ASSURANCE AND MAINTENANCE.(Annexure to the P.W.D circular No 1091-/CR -60/ Bldg -2 dt 14 th October 1991 regarding incorporation additional condition for quality assurance and Maintaince Manual)

To ensure the specific quality of work which will also include necessary surveys, temporary works, etc., the contractor shall prepare a quality assurance plan and get the same approved from the Engineer-in-charge within one month from the date of work order. For this, the contractor shall submit an organisation chart of his technical personnel to be deployed on the work along with their qualification, job description defining the function of reporting, supervising, inspecting and approving. The contractor shall also submit a list of tools, equipment and the machinery and instrumentation, which he proposes to use for the construction and for testing in the field and/or in the laboratory and monitoring. The contractor shall modify supplement the organisation chart and the list of Machinery/ equipment etc. as per the direction of the Superintending Engineer and shall deploy the personnel and equipment on the field as per the approved chart and the list respectively.

The contractor shall submit written method statements dealing his exact proposal of execution of the work in accordance with the specification. He will have to get these approved from the Engineer-in-charge. The quality of the work shall be property documented through certificates, records, check lists and Log book of results etc. such records shall be complied from the beginning of the work and be continuously updated subsequently and this will be the responsibility of the contractor. The form should be got approved from the Engineer in charge.

Clause 59 (2) :Where the work is to be on lum-sum basis on contractor's design the contractor shall also submit a maintenance manual giving procedure for maintenance, with the periodically of maintenance works including inspections to be used, means of accessibility for all parts of the structure. He shall also include in the manual, the specification, for maintenance works that would be appropriate for his design and technique of construction. This manual shall be submitting within the contract period.

Clause 60 : It is obligatory on the part of agency to procure R.C.C. pipe (ISI marked) required for the work from the M.S.S.I.D.C. only. The proof of such procurement like bill of M.S.S.I.D.C. certification of the Divisional Manager M.S.S.I.D.C. to that effect will have to be enclosed along with the bill pertaining to the work concerned. The payment towards the procurement of R.C.C.pipes and also items, in which the use of R.C.C. pipes is contemplated, would be released only after fulfillment of the conditions, laid down as above.

Note: In case provisions of this form B-1 conflicts with those in detailed cyclostyled provisions and conditions attached to this tender. The detailed cyclostyled provision and conditions would prevail over those in this form ' B-1''

GENERAL CONDITIONS OF CONTRACT

1.AUTHORITY OF ENGINEER - IN - CHARGE.

Save in so far as it is legally or physically impossible, the contractor shall execute complete and maintain the works in strict accordance with the contract under the directions and to the entire satisfaction of the Engineer - in - charge and shall comply with and adhere strictly to the Engineer - in - charge instructions and directions on any matter (Whether mentioned in the contract or not) pertaining to this work.

The Engineer - in - charge shall decide all questions which may arise as to quality and acceptability of materials furnished and work executed, manner of executions, rate of progress of work, interpretations of the plans and specifications and acceptability of fulfillment of the contract on the part of contractor. He shall determine the amount and quality of work performed and materials furnished and his decision and measurements shall be final. In all such matters and in any technical questions which may arise touching the contract, his decision shall be binding on the contractor. The engineer in charge shall have power to enforce such decisions and orders if the contractor fails to carry out them promptly. If the contractor fails to execute the work order by the engineer in charge, the engineer in charge may give notice to the contractor specifying a reasonable period therein and on the expiry of that period proceed to execute such work as may be deemed necessary and recover the cost thereof from the contractor.

1.1 AUTHORITY OF ENGINEER-IN-CHARGE REPRESENTATIVE.

The duties of the representative of the engineer in charge are to watch and supervise the work and to test and examine any material to be used or workmanship employed in connection with the works.

1.2 The Engineer in charge may from time to time in writing delegate to his representative any of the powers and authorities vested in the Engineer in charge and shall furnish to the contractor a copy of all such delegations of powers and authorities. Any written instructions of the approval given by the representative of the engineer in charge to the contractor within the terms of such delegations (but not otherwise) shall bind the contractor and department as though it had been given by the Engineer in charge provided always as follows.

- (a) Failure of the representative of the engineer in charge to disapprove any work or materials shall not prejudice the power of the engineer in charge. Thereafter to disapprove such work or materials and to order pulling down, removal or breaking up thereof.
- (b) If the contractor is dissatisfied with any decision of the representative of the engineer in charge he shall be entitled to refer the matter to the engineer in charge who shall thereupon confirm reverse or vary such decisions.

2. **OTHER CONDITIONS FOR SUBMISSION OF TENDER :**

2.1 The contractor shall be deemed to have carefully examined the work and site conditions including labours, the general and the special conditions, the specification schedule and drawing and shall be deemed to have visited the site of the work and to have fully informed himself regarding the local conditions and carried out his own investigations to arrive at the rates quoted in the tender. In this regard he will be given necessary information to the best of the knowledge of Department but without any guarantee about it.

2.2 It is presumed that the contractor has carefully gone through the works specifications. P.W.D. Hand Book and the Schedule of rates of the division and studied the site conditions before arriving at the rates quoted by him.

3. **TREASURE TROVE :**

In the event of discovery by the contractor or his employees during the progress of the works of the any treasure, fossils, minerals or any other article of value or interest, the contractor shall give immediate intimation thereof to the Engineer. And forth with mark over to the Engineer his representative such treasure or things, which shall be the property of Government.

3 -A **LAYOUT OF WORK**

Layout of the work will be done by the contractor in consultation with the Executive Engineer, of the department or his representative . Some permanent marks should however be established to indicate the demarcation of the structures or any component thereof made to this permanent marks in measurement books and drawing, signed by the contractor and the departmental officer, responsibility regarding layout will be joint.

4. **AGENT AND WORK ORDER BOOK :**

4.1 The contractor shall himself engage an authorised all time agent on the work capable of managing and guiding the work and understanding the specifications and contract conditions. A qualified and experienced Engineer shall be provided by the contractor as his agent for technical matters. Site engineer can also be designated as an agent of the contractor. Agent will take orders as will be given by the Engineer in charge or his representative and shall be responsible for carrying them out. This agent shall not be changed without prior intimation of the Engineer in charge and his representative on the work site. The Engineer-in-charge have the unquestionable right to ask for changes in the quality and strength of supervisory staff of contractor and to order removal from work of any of such staff. The contractor shall comply with such order and effect replacements of the satisfaction of the Engineer-in-charge.

4.2 A work order book shall be maintained on site and it shall be the property of Government and the contractor shall promptly sign orders given therein by the Executive Engineer in charge or his representative and his superior officer, and comply with them. The compliance shall be reported by contractor to the Engineer in charge in good time so that it can be checked, the blank work order book, with machine numbered pages will be provided by the Department free of charge for this purpose. The contractor will be allowed to copy out the instruction therein from time to time.

5. **INITIAL MEASUREMENT OF RECORD:**

Where for proper measurements of the work it is necessary to have an initial set of levels or other measurements taken the same as recorded in the authorised field book or M.B. of Government by the Engineer in charge or his authorised representative will be signed by the contractor who will be entitled to have a true copy of same made at his cost. Any failure on the part of the contractor who will be entitled to have a true copy of same made

at his cost. Any failure on the part of the contractor to get such level etc. recorded before starting the work will render him liable to accept the decision of the Engineer in charge as to basis of taking measurements and will be binding on contractor Likewise the contractor will not carry out any work which will render its subsequent measurement difficult or impossible without first getting the same jointly measured and recorded by himself and the authorised representative of the Engineer in charge. The record of such measurement maintained by Government shall be signed by the contractor and he will be entitled to have a true copy of the same made at his cost.

6. CUSTODY OF WORK:

All work and materials before being finally taken over by Government will be the entire liability of the contractor for guarding, maintaining and making good any damages of any magnitude. It is however to be understood that before taking over such work, Government will not put it to its regular use as distinct from casual or incidental use except as specially mentioned elsewhere in this contract or as mutually agreed to.

7. CO-ORDINATION:

When several agencies for different sub works of the project are to work simultaneously on the project site , there must be full co-ordination between the contractors to ensure timely completion of the whole project smoothly. The scheduled dates for completion specified in each contract shall, therefore be strictly adhered to. Each contractor may make his independent arrangements for water, power, housing etc. if they so desire. On the other hand the Contractors are at liberty to come to mutual agreement on his behalf and make joint agreement with the approval of the Engineer in charge. No contractor shall take or cause to take any steps or action that may cause destruction, discontent or disturbance to work, labour or arrangements etc.of other contractors in the project localities. Any action by any Contractors which the Engineer in charge in his unquestioned discretion may consider as infringement of the above code would be considered as a breach of the contract conditions and shall be dealt with accordingly.

In case of any dispute or disagreement between the various contractors, the Engineer in charge decision regarding the co-ordination, co-operation and facilities to be provided by any of the contractor shall be final and binding on the contractor concerned & such a decision shall not vitiate any contract nor absolve the contractor of his obligations under the contract nor form the grounds for any claim or compensation.

8. PATENTED DEVICES, MATERIALS AND PROCESS :

Whenever the contractor desires to use any designed device, materials or process covered by letter of patent or copyright, the right for such use shall be secured by suitable legal arrangement and agreement with patent owner and the copy of their agreement shall be filed with the Engineer-in-charge, if so desired by the later.

9 RELATION WITH PUBLIC AUTHORITIES:

The contractor shall comply with all rules, regulations, bye-laws and directions given from time-to-time by any local or public authority in connection with this work and shall him-self pay all charges which are leviable on him without any extra cost of Government.

10 INDEMNITY:

The contractor shall indemnify the Government against all actions, suits, claims, and demands brought or made against it in respect of anything done or committed to be

done by the Contractor in execution of or in connection with the work of this contract and against any loss or damage to the Government in consequence to any action or suit being brought against the contractor for any thing done or committed to be done for the execution of this contract.

The Government may at its discretion and entirely at the cost of the contractor defend such suit, either jointly with the contractor or single in case the latter chooses not to defend the case.

11. STACKING, STORAGE AND GUARDING OF MATERIALS:

11.1 The stacking and storage of building materials at site shall be in such a manner as to prevent deterioration or inclusion of foreign materials and to ensure the preservation of the quantity, properties and fitness of the work, suitable precautions shall be taken by contractor to protect the materials against atmospheric action, fire and other hazards. The materials likely to be carried away by wind shall be stored in suitable stores or with suitable barricades and where there is likelihood of subsidence of soil, heavy materials shall be stored on paved platforms, suitable separating barricades and enclosure as directed shall be provided to separate materials brought by contractor and from different sources of supply.

11.2 The contractor shall at his own expenses, engage watchman for guarding the Materials and plant and machinery and the work during day and night against any pilferage or damage and also for prohibiting trespassers.

11.3 No Materials brought to site shall be removed from the site without prior approval of the Engineer –in-charge

12. 12.1The contractor shall inform the Engineer in charge in writing when any portion of the work is ready for inspection giving him sufficient notice to enable him to inspect these without affecting the further progress of the work.

12.2 The contractor shall provide at his cost necessary ladders and such arrangements as are considered safe by the Engineer in charge for proper inspection of all parts of the work.

12.3 The contractor shall extend his full co-operation and make all necessary arrangement when needed for carrying out inspection of the work or any part of the work by the local representative , M.L.A's M.P.'s and officers and dignitaries / delegates of various Government department, local bodies, private sectors etc. no compensation shall be paid to the Contractor on this account.

13. PRECAUTIONS TO BE TAKEN BY CONTRACTOR :

13.1 The work shall be carried out by the contractor without causing damage to the existing Govt. property and / or private property. If any such damages are caused the contractor shall pay for restoration of the property to the original condition and any other consequent damages.

13.2 In the event of an accident involving serious injuries or death of any persons, at site of work or quarry or at place in connection with the work the same shall be reported in writing within 24 hours of the occurrence to the Engineer in charge and the Commissioner of workmen's compensation.

14. CLEARANCE OF SITE ON COMPLETION OF WORK:

The contractor after completion of work shall clean the site of all debris and remove all unused materials other than those supplied by the department and all plant and machinery equipment, tools, etc. belonging to him within one month from the date of completion of the work, or otherwise the same will be removed by the department at his cost or disposed off as per departmental procedure. In case the materials is disposed off by department, the sale proceeds will be credited to the contractor's account after deducting

the cost sale incurred. However no claim of the contractor regarding the price or amount credited will be entertained afterwards.

15. **REMOVAL OF CONSTRUCTIONAL PLANT WITH PRIOR PRMISSION :**

All constructional plant, provided by the contractor shall when brought on the site be deemed to be exclusively intended for the construction and the contractor shall not remove the same or any part thereof (Save for the purpose of moving it from one part to the site to another) without the consent in writing of the engineer in charge who shall record the reasons for with holding the consent.

16. **RESTRICTIONS BECUASE OF LOCAL TRAFFIC :**

As there is local traffic by the side of construction of the work, the contractor will have to take proper precautions such as proper barricading, fencing, lighting, information and cautionary boards for safe and smooth flow of traffic, and keeping the concerned authorities informed about the work in progress.

17. **COMPLETION CERTIFICATE :**

17.1 The work shall not be considered to have been completed in accordance with the terms of the contract until the Engineer in charge shall have certified in writing to that effect. No approval of material or workmanship or approval of part of that during the progress of execution shall bind the engineer in charge or any way prevent him for even rejecting the work which is claimed to be completed and to suspend the issue or his certificate of completion until such alterations and modification or reconstruction have been effected at the cost of the contractor as shall enable him to certify that the work has been completed to his satisfaction.

17.2 After the work is completed, the contractor shall give notice of such completion to the Engineer in charge and within 30 days of receipt of such a notice the Engineer in charge shall inspect the work and if there is no defect in the work, shall furnish the contractor with a certificate indicating the date of completion. However, if there are defects which in the opinion of the engineer in charge are rectifiable he shall inform the contractor the defects noticed. The contractor after rectification of such defects shall then inform the engineer in charge and engineer in charge on his part shall inspect the work and issue the necessary completion certificate within 30 days if the defects are rectified to his satisfaction, and if not he shall inform the contractor indicating defects yet to be rectified. The time cycle as above shall continue.

17.3 In case defects noticed by the Engineer in charge which in his opinion are not rectifiable but otherwise work is acceptable at reduced payment, work shall be treated as completed. In such cases completion certificate shall be issued by the Engineer in charge within 30 days indicating the un-rectifiable defects for which specified reduction in payment is being made by him.

17.4 The issue of completion certificate shall not be linked up with the site clearance on completion of the work.

17.5 Should regular, public traffic be allowed on the bridge, road at any stage prior to being taken over then the maintenance period shall be deemed to commence from the date of such traffic passing over the bridge, road & shall be upto 30 days after the date of issue of completion certificate by Engineer in charge but not more than 12 months after opening to traffic.

18. ANCILLARY WORKS:

The contractor shall submit to Engineer in charge in writing the details of all ancillary works including layout and specifications to be allowed for its constructions. Ancillary work shall not be taken up in hand unless approved by Engineer in charge. The Engineer in charge reserves the right to suggest modification or make complete changes in the layout and specifications proposed by the Contractor at any stage to ensure the safety on the work site. The contractor shall carry out all such modifications to the ancillary works at his own expenses as ordered by the Engineer in charge.

19. TEMPORARY QUARTER:

The contractor shall at his own expense maintain sufficient experienced supervisory staff etc., required for the work and shall make his own arrangements for housing of such staff with all necessary amenities. General layout plan for such responsibility of the contractor to get his layout plan of temporary structure approved from the local competent authorities.

20 SAFETY MEASURES. :

The contractor shall take all necessary precautions for the safety of the workers and preserving their health while working on such jobs as required special protection and precaution wherever required. The following are some of the requirements listed though not exhaustive. The contractor shall also comply with the directions issued by the Engineer in this behalf from time to time at all times.

The following are some of the requirements (The list is not exhaustive)

- (1) Providing protective footwear to workers in situations like mixing and placing of mortar of concrete, in quarries and place where the work is to be done under too much wet conditions as also for movements over surfaces tested with oyster growth.
- (2) Providing protective headwear to workers in quarries etc. to protect them against accidental fall of materials from above.
- (3) Providing handrails to the edges of the loading platforms of barrages ropeways, ladders not allowing rails of metal parts or unless timber to spread around etc.
- (4) Providing workmen with proper safety belts, ropes, etc. when working on any masts, cranes, circle hoist, dredges etc.
- (5) Taking necessary steps towards training the workers concerned of the use of machinery before they are allowed to handle it independently and taking all necessary precautions in and around the areas where machines, hoists and similar units are working. Wherever required by the law the persons handling the machinery shall have the required license, certificate etc.
- (6) Preventing over loading and over crowding of floating the land based machinery and equipment.
- (7) Providing life belts to all men working at such situations from where they may accidentally fall into water. Equipping the boats with adequate numbers of life boats etc.
- (8) Avoiding bare live wires etc. as would cause electrocution to workers.
- (9) Making all platforms, stagings and temporary structures sufficiently strong and not causing the workmen and supervisory staff to take undue risks.
- (10) Providing sufficient first aid trained staff and equipment to be available quickly at the work site to render immediate first-aid treatment in case of accident due to suffocation, drowning and other injuries.

- (11) Taking the all-necessary precautions wherever divers are engaged on work.
- (12) Providing full length gum boots, leather hand gloves, leather jackets with fireproof aprons to cover the chest and back reaching upto knees, plain goggles for the eyes to the labour working with hot asphalt, handling, vibrators in cement concrete and also where use of any or all these items is, essential in the interest of health and well-being of the labourers in the opinion of the Engineer-in -charge
- 21. **Medical and sanitary arrangements to be provided for labour employed in the construction by the contractor.**
 - (a) The contractor shall provide an adequate supply of pure and wholesome water for the use of labourers on works and in camps.
 - (b) The contractor shall construct trenches. Semi permanent latrines for the use of labourers. Separate latrine shall be provided for men and women.
 - (c) The contractor shall build sufficient number of huts on suitable plot of land for use of the labourers according to the following specifications.
 - (1) Huts of bamboos and grass may be constructed.
 - (2) There should be no over crowding. Floor space at the rate of 3 Sqm(30 Sq.ft.) per head shall is provided. Care should be taken to see that the huts are kept clean and in good order.
 - (3) The contractor must find his own land. If he wants Govt.land he should apply for it. Assessment for it if demanded will be payable by contractor. However the Department does not bind itself for making available the required land.
 - (4) A good site not liable to submergence shall be selected on high ground remote from jungle but well provided with trees; shall be chosen wherever it is available. The neighborhood of tank, jungles, trees or woods should be particularly avoided. Camps should not be established close to large cutting of earthwork.
 - (5) The lines of huts shall have open space of at least 10 meters between rows. When a good natural site cannot be procured particular attention should be given to the drainage.
 - (d) The contractor shall construct sufficient number of bathing places, sufficient number of washing places also be provided for the purpose of the washing cloths.
 - (e) The contractor shall make sufficient arrangement for draining away the surface and suage water as well as water from the bathing and washing places and shall dispose of the waste water in such away as not cause any nuisance.
 - f) The contractor shall engage a medical officer with a traveling dispensary for a camp containing 500 or more person if there is no Government or other dispensary situated within eight Kilometers from the camp. In case of an emergency contractor shall at his cost, free transport for quick medical help to his sick workers..
 - g) The contractor shall provide the necessary staff for affecting the satisfactory conservancy and cleanliness of the camp to the satisfaction of the Engineer -in charge .At least one sweeper per 200 person should engaged.
 - h) The Assistant Director of public health shall be consulted before opening a labour camp and his instruction on matters such as water supply, sanitary, convenience, the camp site, accommodation and food supply shall be followed by the contractor.
 - i) In addition to above all provision of the relevant labour act pertaining to basic amenities to be provide to the labour shall be applicable which will be arranged by the contractor

- J) The contractor shall make arrangement for all anti malaria measures to be provided for the labour employed on the work. The anti malaria measures shall be as directed by the Public Health Officer.
22. The contractor except as provided in special conditions which follow shall if necessary construct at his cost temporary roads and maintain these in proper conditions till completion of the work at his own cost.
23. The contractor except as provided in special conditions which follow shall have to at his own expenses make all preliminary arrangements for labour, water, electricity and material etc. immediately after getting the work order. The Government may render necessary assistance in this regard by way of letters of recommendations, if so requested by the contractor. No claim for any extra payment or applications for extension of time on the grounds of any difficulty in connection with the above matters will be entertained.
24. **WORKING METHODS AND PROGRESS SCHEDULES :**
- 24.1 The contractor shall submit within the time stipulated by the Engineer-in-charge in writing the details as actual methods that would be adopted by the contractor for the execution of any items as required by Engineer at each of the location supported by necessary detailed drawing and sketches including those of the plant and machinery that would be used their locations arrangement for conveying and handling materials etc., and obtain prior approval of the Engineer-in-charge well in advance of starting of such item of works. The Engineer-in-charge reserves the right to suggest modifications or make corrections in the method proposed by the contractor whether accepted previously or not at any stage of the work to obtain the desired accuracy, quality and progress which shall be binding on the contractor no claim on account of such change in method of execution will be entertained by Government so long as specification of the item remain unaltered.
- 24.2 The contractor shall furnish within one month of the order to start the work programme of work in quadruplicate indicating the date of actual start, the monthly progress expected to be achieved and anticipated completion date of each major item of work to be done by him also indicating dates of procurement of materials and setup of plant and machinery. The programme is to be such as practicable of achievement towards the completion of whole work in the time limit and of the particular items; if any of due dates specified in contract, planning and programme of work should be done by the mature decision between the **Executive Engineer Public Works Division, Jalan** and the contractors representative in charge of work. The progress of work shall be reviewed in every two months and revised programmes shall be drawn if necessary. No revised programme shall be operative without the approval of engineer in charge in writing. The Engineer is further empowered to ask for more detailed schedule or schedules say weekly for any item or items. In case of urgency of work as will be directed by him and the contractor shall supply the same and when asked for. Acceptance of the programme or the revised programme by the Engineer in charge shall not relieve the contractor of his responsibility to complete the whole work by the prescribed time or the extended time if any.
- 24.3 The contractor shall employ sufficient plant, equipment and labour as may be necessary to maintain the progress schedule. The working and shift hours

restricted to one shift a day for operations to be done under the Government supervision shall be such as may be approved by the Engineer in charge. They shall not be varied without prior approval of the Engineer. Night work which requires supervision shall not be permitted except when specially allowed by Engineer in charge on each item if required by contractor. The contractor shall provide necessary lighting arrangement etc. for night work as directed by Engineer without extra cost to Government.

24.4 The contractor shall submit reports on progress of work in forms and statements etc. at periodical intervals in the form of progress chart, forms, statements and / or reports as may be approved by the Engineer in charge. Forms for the sending reports about the progress will be supplied by the Engineer in charge.

24.5 The contractor shall maintain proforma, charts, details regarding the machinery, equipments, labour, materials, periodical returns thereof, proforma to be got approved from the Engineer in charge.

25. **PAYMENTS :**

The contractor must understand clearly that the rates quoted are for completed work and include all cost due to labour, all leads and lifts involved and if further necessitated, scaffolding, plants, machineries, supervision power, service works, royalties, octroies, taxes, etc. and should also include all expenses to cover the cost of lighting, night works if and when required & no claim for additional payment beyond the rates quoted will be entertained and the contractor will not be entitled subsequently to make any claim on the ground of any representation or on any promise by any person (whether member in the employment of any Public Works Department or not) or on the ground of any failure on his part to obtain all necessary information for the purpose of making his tender and fixing the several prices and rates therein relieve him from any risks or liabilities arising out of or consequences upon submission of the tender. Payment to the contractor will be made by the cheque drawn on any treasury within the division provided the amount to be paid exceeds Rs. 100/- shall amount will be paid in cash.

26. **CLAIM FOR EXTRA WORKS :**

26.1 Claim for extra works shall be registered within 30 days of occurrence of the event. However, bills for these claims along with supporting data details may be submitted subsequently.

26.2 Bills for extra works or for any claim shall be paid separately apart from the interim bills for the main works. The payment of bills for the main work shall not be withheld for want of decision on extra claim not covered in the schedule of item for extra work.

27. **BILLS AND PAYMENT :**

27.1 Two running payments in the month are permitted. First of the bills shall be submitted by the contractor by the 10th day of month. Second bill, if necessary, shall be submitted by the 25th day of the month.

27.2 The format of the running bill on which the bills are to be submitted by the contractor shall be supplied to the contractor by the department. Printed copies of

the bills forms as per his format shall be arranged by the contractor at his cost. The bills in five copies shall be submitted to the concerned engineer's representative in the standard proforma only.

- 27.3 The final bill shall be submitted by the contractor within one month of the date of issue of completion certificate. The final bill shall be paid within six months of initial submission.
- 27.4 Recovery of secured advance shall be effected through bills proportionately as per consumption of materials in the work billed for.
- 27.5 The contractor can have true copy of the bills paid to him after paying charges for photocopying the same.

CONTROLLED CONCRETE :

Acceptance criteria shall be as per IS : 456 – 2000 (With latest amendments)

NORMAL MIX CONCRETE :

Acceptance criteria shall be as per IS : 456 – 2000 (With latest amendments)

28. ASSISTANCE IN PROCURING PRIORITIES, PERMIT ETC. :

- 28.1 The Engineer in charge on written request by contractor, will if in his opinion the request is reasonable and in the interest of work and its progress, assist the contractor in securing, the priorities for deliveries, transport, permits for controlled materials etc. where such are needed. The department however will not be responsible for the non-availability of such facilities or delays in this behalf and no claims on account of such failure or delay, shall be allowed by the Department.
- 28.2 The contractor shall have to make his own arrangement for machinery required for the work. However if same is conveniently available with the department it may be spared as per rules in force on recovery of necessary security deposit and rent at the rate approved from time to time by the independent to this contract and the supply or non supply of machinery shall not form a ground for any claim or extension of time limit for this work.

29. WATER SUPPLY :

- 29.1 Availability of adequate water for work and sources thereof shall be confirmed by the contractor before submitting the tender.
- 29.2 The contractor shall make his own arrangements at his own cost for entering into contract with concerned authority for obtaining the connection and carry the water upto the work site as required by him. The location of the pipeline with respect to the road shall be decided by Engineer-in-charge and shall be binding on the contractor. The department shall not bear any responsibility in respect of any problems and contractor shall not be liable for getting the any compensation on any ground. The progress of work shall not hamper for the above reasons.
- 29.3 The contractor is advised to provide water storage tanks of adequate capacity to take care of possible shut down of water supply system.
- 29.4 The contractor shall have to supply water required by the department for its establishment at work site free of cost.

30. **ELECTRICITY :**

- 30.1 The contractor will have to make his own arrangement at his own cost for obtaining or providing electric supply at work site. The department shall not bear any responsibility in respect of any problems and contractor shall not be liable for getting any compensation on any ground. The progress of work shall not hamper for the above reasons.
- 30.2 Electrical supply for the Department's use at work site shall be provided by the contractor on mutual agreed terms. The contractor may not abide by these conditions when power supply at the site fails.

31. **TELEPHONE FACILITIES :**

The contractor will have to make his own arrangement at his own cost for a telephone connection at work site if required.

32. **MATERIAL SOURCES :**

- 32.1 The contractor shall make their own independent investigation as to the availability as well as suitability of various materials required for construction as referred to in these paras.
- 32.2 If any quarry is in the possession of the department the contractor will be allowed to use the same on usual condition. In other cases, the contractor will have to make his own arrangement for procuring quarries or the quarry permits, necessary assistance for which will be given by the department.
- 32.3 Lime stone shall not be permitted for any concrete work.

33. **LAND :**

- 33.1 The contractor shall make all efforts to obtain land required for the ancillary works. In case the contractor is unable to obtain land and if requested, then the department may requisitioned land at his own cost.
- 33.2 Land as available with department for requisitioned by the department at the request of a contractor will be handed over to the contractor for such use as will be necessary for ancillary works, on payment of rent to the department. Plot development if any will have to be done by the contractor at his own cost. The development shall be in conformity with the regulations with the local authorities.
- 33.3 If for the purpose of construction of the work it becomes necessary for the bidders to occupy land not in possession of the department, the bidders will have to make his own arrangement with the land owners, and pay such compensation as a mutually agreed between them. on completion of work , all land mentioned in para 33.1 and 33.2 and 33.3 shall be handed back to the owners or the department as the case may be after cleaning the land as directed by the Engineer in charge.
- 33.4 Dismantling of building on a Govt. or department land shall be done only after the approval of Engineer-in-charge.

34. **FLOODS AND ACCIDENT S :**

The contractor shall take all precaution against damages by floods or from accidents etc. No compensation will be allowed to the contractor on this account or for correction and repairing any such damage to the work during construction. The contractor shall be liable to make good at his cost any plant or material belonging to the Govt. loss or damaged by floods or from any other cause while in his charge.

The proof of occurrence of flood report with flood level will have to be furnished by the contractor. No compensation will be allowed for damages on ancillary items and equipments etc which are brought to the site by the contractor for effecting execution of work.

35. **URGENT WORK :**

If any "Urgent Works" (In respect where decision of the Engineer -in -Charge shall be final and binding) become necessary and contractor is unable or unwilling to carry it out at once, the Engineer in charge by his own or through the other people have it carried out as he may consider necessary. If the Urgent Work shall be such as in the opinion of the Engineer in charge the contractor is liable under the contract to carry out at his expenses. All expenses incurred on it by the department shall be recoverable from the contractor, and be adjusted or sets off against any sum payable to him.

36 CHANGE OF CEMENT CONTENT ETC.:-

THEORETICAL CONSUMPTION OF CEMENT FOR THE CONCRETE WORK:

SR.No.	Grade of concrete	Consumption of cement in bags / Cum
1	M-10	4.40bags
2	M-15	6.27bags
3	M-20	7.10 bags
4	M-25	7.50 bags

Note :- The weight per bag of Cement is considered as 50 Kg

Consumption rate of cement is for OPC. In case ,contractor desires to use PPC then he should get mix design for all grades of concrete mentioned above and in schedule 'B" from reputed laboratory as approved by Engineer -In -Charge at no extra cost to Government

The rate of consumption of cement for various grades of concrete referred above is a theoretical rate of consumption assumed for the estimate purpose. The contractor will have to obtain an economic mix design for grades of concrete M-20 and above and get it approved from the Engineer-in-charge. The specification for controlled cement concrete shall be as per standard specification No.B-7 Page 38, and IS 456-2000.

Immediately upon the receipt of the award of the contract, the contractor shall inform the Engineer the exact location of the sources of the acceptable material. The concrete mix to be used shall be got designed P.W.D laboratory, by the contractor with a optimum quantity of cement to give the specified strength in the preliminary tests and the proportion got approved by the engineer in writing. These proportions shall be used so long as the materials continue to be of the same quality and from the same sources subject only to slight changes in the relative quantities of fine and course aggregate for the purpose of promoting workability provided the work tests also shows the required strength.

If such Mix design involve change in cement consumption upto 2 % on the higher or lower side, no adjustment in the cost of the item to be paid to the contractor shall be made. If such alterations, changes, theoretical consumption of cement by more than 2 % on the higher or lower side, the sources and quality of aggregate

remaining the same, payment will be adjusted for or against the contractor in whatever amount the total cost of cement to the contractor has been increased or decreased by more than 2 %. The amount of such increase or decrease shall be calculated on the basis of quantity of cement determined and prescribed in the above table. In adjusting the cost only the cost of cement shall be considered and not handling or other charges, which shall be treated as incidental to the item for working out the cost towards adjustments in cement consumption the basic for cement shall be star rate as indicated in clause 54. If during the progress of work the contractor wishes to change the material, the proportions shall be fixed on the basis of fresh preliminary tests to give the required strength after the Engineer is satisfied that the material satisfy the specifications. No adjustment of the cost shall be made for a change of proportions of cement fixed in the original preliminary tests. For all concrete items only trap metal shall be used.

37. **CONTRACTOR TO INFORM HIMSELF FULLY :**

The contractor shall be deemed to have carefully examined the work and site conditions including labours, the general and the special conditions, the specifications schedule and drawing and shall be deemed to have visited the site of the work and to have fully informed himself regarding the local conditions and carried out his own investigations to arrive at the rates quoted in the tender. In this regards he will be given necessary information to the best of the knowledge of Department but without any guarantee about it. If he shall have any doubt as to the meaning of any portion of these general conditions, or the special conditions to the scope of working of the specification and drawings, or any other matter concerning the contract, he shall in good time before submitting his tender set forth the particulars thereof and submit them to the Engineer in writing in order that such doubt may be clarified authoritatively before tendering. Once a tender is submitted the matter will be decided in accordance to the tender conditions in absence of such authentic clarification.

38. **ERRORS, OMISSION & DISCREPANCIES :**

- a) In case of errors, omissions and / or disagreement between written and scaled dimensions in the drawing or between the drawing and specifications etc., the following order of preference shall apply.
 - (i) Between actual scaled and written dimensions or description on a drawing the latter shall be adopted.
 - (ii) Between the written description or dimensions in the drawing and the corresponding one in the specifications, the latter shall apply.
 - (iii) Between the quantities shown in the schedule of quantities and those arrived at from the drawing the latter shall preferred
- b) In all cases of omissions and/or doubts or discrepancies in the dimensions or of any item or specification a reference shall be made to the engineer, whose elucidation, elaboration or decision shall be considered as authentic. The contractor shall be held responsible for any errors that may occur in the work through lack of such reference and precautions.
- c) The contractor should not sublet any part of work without written permission of the Engineer in charge.

39. **SAMPLES AND TESTING OF MATERIALS :**

- (i) All materials to be used on work, such as cement, steel, stones, bricks, aggregates, asphalt, wood, tiles, etc. shall be got approved in advance from the Engineer-in-charge and shall pass the tests and analysis required by him.
- (ii) The contractor shall at his risk and cost make all arrangement and / or shall provide for all such facilities as the Engineer in charge may require for collecting, preparing and forwarding required number of samples for tests or for analysis to the nearest approved laboratory and bear all charges and cost of testing. Such samples shall also be deposited with the Engineer-in-charge till sent for testing. Out of total number of tests as per frequency requirement 30 % of these tests shall be carried out in P.W. Department Laboratory.
- (iii) The contractor shall if and when required submit at his cost the samples of materials to be tested or analysed and if so directed shall not make use or incorporate in the work any material represented by the samples until the required tests or analysis have been made after the test of the materials finally accepted by the Engineer-in-charge.

(iv) **Testing of Material :**

- (1) Frequency of testing of the construction material and the percentage of the testing from the Government laboratory shall be as under:
 - (a) Where the field laboratory certified by the concerned Engineer in charge is established at the work site 70% test as per total frequency required shall be carried out in the said field laboratory and 30% tests shall be carried out at the Vigilance and Quality control laboratory of P.W.D for the material not covered in the annexure **IV** 50% tests shall be carried out in the field laboratory and remaining 50% tests need to be carried out in the vigilance and quality control laboratory of P.W. D Maharashtra , The entire responsibility of the sample testing as per required frequency including testing charges will be borne by the agency
 - b.) Where field laboratory is not established at the works site 100% tests as per frequency shall be carried out in the Vigilance and quality laboratory .Aurangabad
 - c) Testing of cement and steel 100% in Vigilance and quality laboratory. Aurangabad is compulsory.
 - d) It is mandatory to submit the test reports of materials/samples used for the work as per the frequency given in the specification with the bill. If the test results are not submitted along with the bill, amount equal to five times the prevailing VQC testing charges shall be deducted from the bill. Samples for the items for which testing is not done as per frequency shall be collected and submitted for testing by the engineer in charge or his representative for testing and testing charges for this sample shall be paid by engineer in charge through the amount deducted as above and balance amount shall be remitted to revenue. Till such results are received contractor shall be paid at part rate as decided by the Engineer in Charge.**
- (2) Mixing of concrete shall be done with concrete mixers
- (3) The Contractor shall make field arrangements for testing of all materials for cement concrete i.e. slump test, bulkage test, etc.. The concrete cube mould 3 Nos. of 15cm x 15cm x 15 cm. size shall be kept at site during concreting operation.

One set of six 15 cm. (about 6" cubes shall be prepared from the concrete to be used in work for compression test on the first three days operation and thereafter for every 60 cubic metre of concrete of three days work whichever is less. If source of aggregate or grading is changed, one set of six test cubes shall be taken for each changed batch. Three cubes shall be tested for test at 7 days age and 3 at 28 days in Regional Testing Lab of P.W.D. at..... All the testing charges shall be paid by the contractor. The entire responsibilities of the testing of materials will be borne by the contractor.

- (4) For providing Electric Wiring, Duct tubes of the required diameter and length shall be provided through walls, beams and floors, slabs as and when directed without any extra cost.
- (5) (a) The contractor shall make his own arrangement for receiving all materials, tools, etc. required for the work.
 (b) No extra charges for carriages of water will be allowed.
 (c) The rates for all items are inclusive of all charges such as carting, lifting, etc. No extra payment for any lead and lift will be paid for any items.
 (d) A frequency of testing shall be as per relevant works specification. In case such frequency is not specified in the works specification then the IS code will be referred and for other cases where IS code do not stipulated the frequency of testing, it will be as directed by Engineer in charge and should be furnished in specified test abstract **Annexure III**
 (e) The Contract should not be sublet without written permission of Executive Engineer
 (f) Tender condition of tender notice will be binding on contractor and etc tender notice will form a part of agreement

40. **WEIGH BATCHING:** The following instructions shall be followed as regards to preliminary designs of mix and methods of batching of plain cement concrete and reinforced cement concrete. The preliminary mix design and batching for various grades of concrete shall be governed by the guidelines as per I.S. 456-2000. It will be the responsibility of the contractor to obtain the mix design for various cement concrete grades at his cost from the P.W.D laboratory.

41. **MISCELLANEOUS:**

41.1 **ERASER:**

Person tendering are informed that no erasers or any alteration by them in the text of the documents set herewith will be allowed and any such eraser or an alteration will be disregarded. If there is any error in writing no overwriting should be done but the wrong words or figures should be struck out and the correct one written above or near it in an unambiguous way. Such correction should be initialed and dated.

41.2 **ACCEPTANCE:**

Intimation of acceptance of tender will be given by a telegram or a letter sent by registered post to the address given below the signature of the tenderer in the

tenders. The tenders which do not fulfill any of the above conditions or those in the form and which are incomplete in any respect shall be liable for rejection.

41.3 **COMPETENCY OF TENDERERS :**

The work will be awarded only to those bidders who are considered to be responsive bidders, capable of performing the class of work to be completed. Before passing the final award any or all bidders may have to show that he has the necessary experience, facilities, ability and financial resources to execute the work in satisfactory manner and also within the stipulated time. The bidders may also be required to furnish to the Department a statement in respect of their experience and financial resources.

41.4 **PRECAUTIONS TO BE TAKEN BY THE CONTRACTOR TO PREVENT ACCIDENT. :**

- 1) No live electric line should be allowed to run along the ground in the blasting zone and they should be at least 3 m above ground if not more.
- 2) The wiring cable should not be taken near the live electric line and it should be preferably shot firing cable as supplied by the supplier of explosives. If such a cable is not available a substitute cable made up of several pieces jointed and tapped be used.
- 3) The blasting shed from where the exploder is to finally operate should be at least 150 m. away from the area to be blasted. It should have a strong roof, which can withstand the impact of flying stones at this range.
- 4) Only trained hands shall be allowed to handle explosive cable detonators etc.

41.5 **POLICE PROTECTION :**

For the police protection of the camp of the contractor's work, the Deptt. will help the bidders as far as possible to arrange for such protection with the concerned authorities the cost shall be borne by the contractor.

41.6 For providing electric line and water line etc. recesses shall be provided. If necessary, through walls, slabs, beams, etc., and later on refilled it with a bricks or stones, chipping cement mortar without any extra cost.

41.7 In case it becomes necessary for the due fulfillment of the contractor for contractor to occupy land outside the department limits, the contractor will have to make his own arrangement with the land owners and pay such a rents, if any, which are payable as mutually agreed between them.

41.8 The contractor shall duly comply with the provisions of the Apprentices Act. 1961 (iii of 1961) and the rule and orders made there under from time to time under the said Act and the said Rules and on his failure or neglect to do so he shall be subject to all the liabilities and penalties provided by the said Act and Rules.

41.9 It is presumed that the contractor has gone carefully through the standard specification (Vol. I & II 1981 edition) and the schedule of rate of the Division, and studied of site conditions before arriving at rates quoted by him. The special provisions and detailed specification of wording of any item shall gain precedence over the corresponding contrary provisions (if any) in the standard specification

given without reproducing the details in contract. Decision of Engineer-in-charge shall be final in case of interpretation of specification.

- 41.10 If the standard specifications fall short for the items quoted in the schedule of this contract reference shall be made to the latest Indian Standard Specifications, I.R.C. codes, and MOST specification if any of items of this contract do not fall in reference quoted above, the decision and specifications as directed shall be final.

42. **LOAD TESTING**

LOAD TEST OF STRUCTURAL CONCRETE.

- 1 In case of doubts regarding grade of concrete used either due to poor workmanship or based on results of cube strength tests, the load testing of any part of the structure will have to be carried out by the Contractor at his own cost.
2. Before carrying out load test, the Contractor shall carryout the suitable non destructive testing of the structure which are in doubt, at his own cost. Non destructive testing is fully optional and at the discretion of the Contractor.
- 3 In such cases the Engineer-in-Charge shall inform the Contractor sufficiently in advance in writing along with the reasons for carrying out the load test, during execution of work or during maintenance period of the Contract.
4. The load test will have to be carried out as per the provisions contained in IS: 456-2000.
- 5 If the load test results do not meet the requirements as stipulated in relevant .S. code the structure shall be deemed to be unacceptable

43. **SPECIAL CONDITIONS :**

- 43.1 The bidders should ensure that all safety precautions are observed by their labours, working closed to the State Highway and while closing the state Highway precautions are taken including insurance etc., for their labour at the cost of the contractor etc. if any accident occur to the labour etc., no claim in this regard on whatsoever account shall be entertained and the decision of the Department will be final and conclusive.
- 43.2 **During the execution if there is any change in:**
- (i) Span Arrangement.
 - (ii) Height of substructure and superstructure above ground level.
 - (iii) Change in the depth of foundation, tendered rate for respective items will hold good and no extra claims shall be entertained on this account.
- 43.3 Contractor shall observe the rules and regulations empowered by traffic police for smooth flow of traffic on the diversion road and shall not be entitled for claim any compensation arising thereof.

44. **DEFINITIONS:** Unless included by or repugnant to the contents
- (a) Government: The expression "Government" as used in the tender documents shall mean the Public Works Department of the Government of Maharashtra.
 - (b) Chief Engineer: The expression 'The Chief Engineer' as used in the tender papers shall mean Chief Engineer P.W .Region
 - (c) Superintending Engineer: The expression 'Superintending Engineer' as used in the tender papers shall mean the officer of Superintending Engineer's ranks (by whatever designation he may be known) under whose control the work lies for the time being.
 - (d) Engineer-in-charge: The expression Engineer or Engineer-in-charge as used in the tender paper shall mean the Engineer-in-charge of the work.
 - (e) Contractor: The expression 'Bidder' as used in the tender papers shall mean the successful tenderer that is the tenderer whose tender has been accepted and who has been authorised to proceed with the work.
 - (f) Contract: The expression 'Contract' as used in the tender papers shall mean the deed of contract together with all its original accompaniments and those later incorporated in it by mutual consent.
 - (g) Plant: The expression 'Plant' as used in the tender papers shall mean every temporary accessory necessary or considered necessary by the Engineer to execute, construct, complete and maintain the work and all altered, modified, substituted and additional works ordered in the time and the manner herein provided and all temporary materials and special and other articles and appliance of every sort kind and description whatsoever intended or used therefore.

45. **MIX DESIGN :**

45.1 The following instructions shall be followed as regards preliminary design of mix and methods of batching of plain cement concrete and reinforced cement concrete. These instructions should be treated as supplementary to the relevant provision in the specifications for the respective items contained in the book of standard specifications and will override the provisions contained therein wherever they are contrary to the following instructions.

The preliminary mix design and batching for various grades of concrete shall be governed by the following guidelines.

Concrete Grade

Guidelines

- 1) Upto M-15: This should only be ordinary concrete. No change may be prescribed in the present practice as regards preliminary design of mix and permitting volume batching. Only cement to weight batched
 - 3) M-20 and above : Preliminary mix design must be prepared for such mixes Weight batching shall be insisted for cement fine aggregate and coarse aggregate.
- 45.2 For the grades of concrete M-20 and above the preliminary mix design shall be carried out from the approved laboratory.

- (1) The charges for preliminary design, of concrete mix shall be entirely borne by the Bidder.
- (2) For grades of concrete M-20 and above where cement is to be used by weight, the cost of extra cement required to make-up the under-weight bags shall be borne by the Bidder.
- (3) For the items of concrete of grades lower than M-20 and other items in the agreement, where cement is not to be used by weighment, the cement bags as received from the manufacturer and supplied to the Bidder under Schedule 'A' shall contain cement of 50 Kg. net weight.

45.3 The admixtures such as plasticizers/super plasticizers for concrete grade M-20 and above shall be used as directed by Engineer in charge depending upon specific requirements. No extra payment s on this account will be admissible

ADDITIONAL TENDER CONDITIONS

(1) The Bidder should produce the no objection certificate obtained from the Maharashtra Pollution Control Board before starting Crusher / Drum Mix Plant on the work site.

(2) **SUPPLY OF COLOUR RECORDS PHOTOGRAPHS AND ALBUM.**

The Bidder shall arrange to take Color Photograph at various stage / facets of the work including interesting and novel features as desired by the Engineer in charge. Photographs shall be of and taken to the standard post card size marked in album of acceptable quality. Also the negative film in 35 mm size shall be supplied for each photograph in the Album shall be suitably captioned. The Bidder shall arrange for taking video films of important activities of the work as directed by the Engineer in charge during the currency of the project & editing them to a video film of playing time not less than 60 minutes & upto 180 minutes as directed by Engineer in charge. It shall contain narration of the activities in English / Marathi by a competent narrator. Videocassette shall be of acceptable quality & film shall be capable of producing color picture. It shall be considered as incidental to the work and no additional payment whatsoever will be made for the same.

(3) After award of contract, Bidder will have to provide and fix the information boards showing name, tender cost, period of completion, name and telephone number of agency and Engineer in charge and other details as directed by Engineer in charge

(4) Insurance of Contract Work:

Bidder shall take out necessary insurance Policy/Policies (viz Bidder's all risk Insurance policy, Erection all risk insurance policy etc as decided by the Directorate of insurance.) so as to provide adequate insurance cover for execution of the awarded contract work for total contract value and complete contract period compulsorily from the " Directorate of insurance, Maharashtra State ,Mumbai" only. Its Postal address for correspondence is 264, MHADA ,First floor ,Opp .Kalamagar, Bandra (E) Mumbai 400051 (Telephone Nos 26590403 / 26590690 and Fax No 26592461/26590403) Similarly all workmen's appointed to completed the contract work are required to insure under workmen's compensation Insurance policy. Insurance Policy/Policies taken out from any other company will not be accepted. If any Bidder has effected Insurance with any insurance company, the same will not be

accepted and the amount of premium calculated by the Government Insurance fund will be recovered directly from the amount payable to the Bidder for executed contract work and paid to the Directorate of Insurance fund, Maharashtra State. Mumbai .The Director of Insurance reserves the right to distribute the risk of Insurance among the other insures.

- (5) A board 0.90 m x 0.60 m showing following information shall be provided by Bidder at no extra cost to the Government

(6) ROYALTY CHARGES

Royalty charges for supply of materials : As per the instructions issued vide P.W.D. Govt. Of Maharashtra Resolution of Revenue and Forest Department No. Gaukhani-10/1062/CR-603/Kh(1) dated 15/5/2015 while freaming the estimates, royalty charges for the items of supply of materials like to rubble, metal, crushed metal, soft murum/ hard murum, sand and soil shall be considered in the rate analysis of respective items @Rs.155.50 per Cubic Metre (Rs.440.00 per brass) or actual and shall be recovered. The contractor has to pay these charges directly to Revenue Dept and original challans, permission documents shall be produced to concerned Executive Engineer. If contractor fails to produce these original documents the royalty charges shall be recovered from contractor's bill.

महाराष्ट्र शासन

१. सार्वजनिक बांधकाम विभागाचे नाव
२. कामाचे नाव
३. कि.मी.
४. कामाची किंमत
५. कंत्राटदाराचे नाव
६. कामास सुरुवात झाल्याचा दिनांक
७. काम पूर्णत्वाचा कालावधी
८. दोषनिवारण कालावधी
९. पासुन दिनांक
- १०.पर्यंत दिनांक

SPECIAL CONDITIONS

(1) Construction Machinery / Equipments:

- 1.1 The methodology and equipments to be used on the project shall be furnished by the Bidder to the Engineer-In-Charge well in advance of commencement of work and approval of the Engineer-In-Charge obtained prior to its adoption and use.
- 1.2 The Bidder shall give, a trial run of the equipment for establishing its capability to achieve the laid down specifications and tolerance to the satisfaction of the Engineer-in-Charge before commencement of work, if so desired by the Engineer-In-Charge .
- 1.3 All equipments provided shall be of proven efficiency and shall be operated and maintained at all times in the manner acceptable to the Engineer-In-Charge .
- 1.4 No equipment or personnel shall be removed the from site without permission of the Engineer-In-Charge .

(2) Work Programme and Methodology of construction:

The Bidder shall furnish his programme of construction ,for execution of the work within the stipulated time schedule together with methodology of construction of each item or work and obtain the approval of the Engineer-In-Charge to the revised programme, if necessary/

(3) Revised Programme of Work in case of slippage:

In case of slippage from the approved work programme at any stage, the Bidder shall furnish revised programme to make up slippage within the stipulated time schedule and obtain the approval of the Engineer-in-charge to the revised programme.

(4) Action in case disproportionate progress:

In case of extremely poor progress of the work or any item at any stages of work which in the opinion of the Engineer-In-Charge can not be made good by the Bidder considering his available resources, the Engineer-In-Charge will get it accelerated to make up the lost time through any other agency, and recover the additional cost incurred, If any, in getting the work done from the Bidder after informing him about the action envisaged by him.

- (5) The responsibility of assuring the quality of work shall be on the Bidder who shall take actions as stipulated in standard specification as per "Schedule C"

6) Labour License : It shall be obligatory on the part of the Bidder to obtained the necessary labour License from the labour Department within fortnight of issue of work order.

SCHEDULE 'A'

STATEMENT SHOWING (APPROXIMATIELY) THE MATERIAL TO BE SUPPLYING TO THE BIDDER FROM
DEPT . STORES AND RATES AT WHICH THE MATERIAL S ARE TO BE SUPPLIED

NAME OF WORK;- : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Sr. No.	Name of Material	Approximate Quantity to be stipulated	Unit	Rate at which the material will be charged to Bidder		Remarks
				In Figures	In words	
1	2	3	4	5	6	7
		----- Nil-----				All material to be brought by Bidder as per Appendix 'A'

APPENDIX "A"

STATEMENT SHOWING (APPROXIMATELY) QUANTITY TO BE BROUGHT BY THE BIDDER AT HIS OWN COST FOR THE WORK

NAME OF WORK;- : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Sr. No.	Name of Material	Approximate Quantity to be stipulated	unit	
1	2	3	4	5
1	Cement	 MT	One Metric Tonne	1) All the materials are to be procured and brought by the Bidder at the site at his own risk and cost. 2) Physical properties shall be confirmed with M.O.S.T./I.S./ I.R.C specification. 3) Stipulated test shall be carried out by the Bidder at his own cost as per the frequency. 4) Custody of material shall be sole responsibility of the Bidder. 5)The proof of purchase of all materials should be produced during the execution of work and along with bill 6) The grade of cement shall be got approved from the Engineer - in-Charge
2	Steel TMT	 MT	One Metric Tonne	

CONDITIONS FOR THE MATERIALS TO BE PROCURED BY THE BIDDER

1.Cement :

Only Ordinary Portland cement 43 grade conforming to the I.S.: 8112 shall be permissible for the work. Independent testing of cement used shall be done by the Bidder at site and in the laboratory approved by the Engineer-in-charge before use. Any cement with lower quality than that shown in the manufactures certificate shall be debarred from use. In case of finally ground cement or imported cement, the Engineer-in-charge may direct the Bidder to satisfy him as to the acceptability of such cement, especially with regard to creep and shrinkage effect. Any consignment or part of a consignment of cement, which has deteriorated in any way, shall not be used in the works and shall be removed from the site by the Bidder without charge to the employer. Cement shall be transported, handled and stored on the site in such a manner as to avoid deterioration and contamination. Each consignment shall be stored separately so that it may be readily identified and inspected and cement shall be used in the sequence in which is delivered at site.

The Bidder shall prepare and maintain proper records on site in respect of the delivery, handling storage and use of cement and these records shall be available for inspection by the Engineer-in-charge at all times.

2. Mild Steel /T.M.T Steel

T.M.T steel shall comply with IS: 1786 and "Mild Steel" bars shall comply with IS: 432.

All reinforcement shall be free from rust loose mill scale or coats of Oil, Paints etc. which may destroy bond and protected by anti corrosive treatment before placing in position for concreting.

The agency should use the steel manufactured by the Main Producers only. No re-rolled steel shall be incorporated in the work.

(3) II Class Burnt Brick

II nd Class burnt clay brick without frog shall not be accepted. in any case. The brick with frog 10 to 20 mm deep on one of its side only shall only be accepted. The diameter of the bricks shall be strictly in accordance with the Indian standard 12894 2002 .If the size of bricks is found to be more than that of specified in the item of work, the rate will be proportionally reduced because of reduced joints and labour .The size of bricks smaller than the specified in the item of work shall not be accepted. The sample of bricks shall be got approved from the Engineer -In -charge before using the same in the work. It shall be the responsibility of the Bidder to got tested the sample of bricks for the physical charcterstatics from the approved laboratory and submit the test report to be Engineer in charge before using the bricks in the work

(4) . **Fly ash bricks** shall confirm to IS: 12894:2002. Bricks with frog will only be accepted. In case the size of bricks is more than that specified in item, rate will be proportionally reduced because of reduction in joints. Bricks of size smaller than that specified in item of work shall not be accepted.

5. Rejection of Materials not conforming to specification :

Any Stock or batch of material(s) of which sample(s) does not confirm to the prescribed test and quality, shall be rejected by the Engineer-in-charge or his representative and such materials shall be removed from site by the Bidder at his own cost. Such rejected materials shall not be made acceptable by any modifications.

Materials not corresponding in character and quality with approved samples will be rejected by the Engineer-in-charge or his representative and shall be removed from the site at the end of working season will not be allowed to use for any component of work in the next seasons.

ADDITIONAL CONDITIONS FOR CEMENT, STEEL, BITUMEN BROUGHT BY THE BIDDER.

- 1) All the materials required for construction of work shall be arranged by the Bidder at his own cost. The samples of material to be procured shall be got approved by the Engineer-in-charge and material as per approved samples shall only be procured.
- 2) The Bidder shall submit periodically as well as on completion of work, an account of all materials brought by him in a manner as directed by Engineer-in-charge. The Bidder shall also furnish monthly account of materials; a separate register shall be maintained on site for recording daily item wise receipt and consumption of Cement, Steel and Asphalt used by him, also item wise consumption of other materials used. This register shall be signed daily by the Bidder or his representative and representative of Engineer-in-charge.
- 3) All the materials required for the work shall be brought by the Bidder at his own cost. In each case, certificate for its quality and quantity shall be produced by the Bidder at his own cost and the test results of samples shall be supplied to the Department. The material not confirming to the required standard shall be removed at once from the site of the work by the Bidder at his own cost.
- 4) Testing of all construction material shall be carried out as per required frequency and specifications and the charges for testing shall be borne by the Bidder
- 5) All the testing charges for mix design etc. if necessary on construction work shall be borne by the Bidder.
- 6) The Bidder shall construct shed / sheds as per direction of the Engineer-in-charge of the work for storing the materials brought at site. The material shall be taken out for use in the presence of the departmental representative only.
- 7) The Bidder shall make his own arrangement for the safe custody of the materials which are brought for construction of work.
- 8) The Bidder shall not transfer any material once brought at work site without prior written permission from Engineer-in-charge and for bonafied reasons only.
- 9) In case the materials brought by the Bidder become surplus owing to the change in the design of the work, the materials should be taken back by the Bidder at his own cost after prior permission of the Engineer-in-charge.
- 10) The charge for conveyance of materials from the place of delivery to the site of work and the actual sport on work site shall be entirely borne by the Bidder. No claims on his account shall be entertained.
- 11) The Bidder shall furnish the account of cement, steel, asphalt brought by him at each time before placing orders for further supply. Also the same should submit on completion of the work, final account of the materials used by him to the Department. This account will be Scrutinised by the Engineer-in-charge.
- 12) All empty cement bags or empty asphalt drums shall be the property of Bidder and the same shall be removed immediately after completion of work.
- 13) The Bidder shall procure the pipes if required for this work from M.S.S.I.D.C. only. Proof of purchasing of pipe should be submitted.

LIST OF APPROVED MATERIALS. ..(Civil works)

1)	Cement.	--	Ambuja , Ultratech, Birla, ACC ,India Cement with ISI Mark
2)	TMT Steel	--	SAIL, ESSAR, TATA, JSW With ISI mark
3)	Flooring Tiles	--	NITCO, Somani , Johnson , Kajaria with ISI mark only
4)	Sanitary ware	--	Jacquar , Hindware , Parryware , Somani, Kajaria with ISI mark only
5)	Plywood	--	Kitpy, Greenply, Century , Mayur ,with ISI Mark
6)	UPVC pipes	--	Astral, Finolex , Plasto , Texmo, with ISI Mark.
7)	G. I. Pipes	--	TATA, Jindal, Prakash, Apollo , Zenith with ISI Mark.
8	Paints		Asian, Berger, Nerolac, Shalimar with ISI Mark.
9)	Glass for windows & partitions		Saint Gobain, Parekh, asahi with ISI Mark.
10)	Alluminium sections		Hindalco, Jindal , Porwal with ISI Mark
11)	PVC Water Tank		Sintex , Plasto with ISI Mark

Note :-1) Makes other than the above mentioned makes will be approved by Executive Engineer, Public Work Division , if necessary. In Special case

DECLARATION

I/ we hereby declare that I/we have made myself/our selves thoroughly conversant with the local conditions regarding all materials such as stones, murum, sand etc and labour on which I/we have based my /our rates for this Work. The specification, lead & lift for this work have been carefully studied and understood by me before submitting the tender. I/we undertake to use only the best material approved by the Engineer- in- charge or his duly representative before starting the work and to abide by his decision.

I/We shall maintain /rectify the entire work as per as per standard specification of P.W.D (Red Book) and M.O.R T and .H specification as soon as damage occurs up to the expiry defect liability period without putting forth any reasons.

I hereby undertake to pay the labourers engaged on the work as per Maharashtra Contract Labour (Regulation and Abolition rule 1971) or at the rate revised by the Competent Authority time to time applicable to the zone concerned.

BIDDER'S SIGNATURE.

FORM - 1
LIST OF MACHINERY AVAILABLE WITH TENDERER WHICH WILL BE USED ON THIS WORK

NAME OF TENDERER :- _____

NAME OF WORK;- : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Sr. No.	Name of Equipment	No. of Unit	Kind of Make	Capacity	Age of machinery	Present Conditions	Present location with name & address of organization where machinery under use at present	Whether machinery is hypothecated to any division / Bank or other institution etc.	Remarks
1	2	3	4	5	6	7	8	9	10

Notes :- The above machineries are readily available with me / us for use on this work

Bidders :- _____

Name :- _____

Address :- _____

FORM - 2
LIST OF TECHNICAL PERSONNEL OF THE TENDERER LIKELY TO BE APPOINTED ON THIS WORK

NAME OF TENDERER :- _____

NAME OF WORK;- : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Sr. No.	Designation	Name	Qualification	Professional Experience of work carried out	Remarks
1	2	3	4	5	6

Bidders :- _____

Name :- _____

Address :- _____

FORM-3

DETAILS OF WORKS TENDERED FOR IN HAND AS ON THE DATE OF SUBMISSION OF THE THIS TENDER

NAME OF TENDERER :- _____

NAME OF WORK;- : CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.

Sr. No.	Name of Work	Name & address of organization for whom the work was done	Place and country	Works in hand			Works tendered for			Remarks
				Tendered cost	Cost of remaining work	Anticipated date of completion	Estimated cost	Date when decision is expected	Stipulated date or period of completion	
1	2	3	4	5	6	7	8	9	10	11

Bidders :- _____

Name :- _____

Address :- _____

Certificates from Heads of officers under whom the work are in progress should be enclose

Contractor

No of Correction

Executive Engineer

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Annexure-II

Format for Declaration of Authorised Signatory on plain paper regarding Work allotted, completed
/Incomplete works from Start of Registration

I do hereby declare that, the following information work of allotted through Lottery and Through on
line Contract under Unemployed Engineer Category Tender is true correct and **complete**.

Sr No	Name of Division	Name of Work	Tendered Cost	Executed Cost upto this Tender	Balance Cost	Status of Work
Total						

In case, the contents submitted above is found to be incorrect ,incomplete or false, I shall be liable for
action under the relevant provision of Indian Penal Code and other relevant laws.

Signature of Unemployed Engineer

Applicant/ Name

Address.....

Place :-

Date :-

E-mail.....

Mobile No.....

Website.....

Annexure-III
FINANCIAL RULE – FORM 2 A
(See Rule 51-4)
GUARANTEE BOND FOR SECURITY DEPOSIT.

In consideration of the Governor of Maharashtra (herewith referred to as ' THE GOVERNMENT') having agreed to exempt (herewith referred to as 'THE CONTRACT') form depositing with the Government in cash, the sum of Rs. _____(Rs. _____ only) being the amount of security deposit payable by the contract to the Government under terms and conditions of the agreement dated the _____ day of _____ and made between the Government on the one part and the Bidder on the other part (hereinafter referred to as the "the observance and performance by the Government a Guarantee in the prescribed form from a scheduled Bank in India being in fact these present in the like sum of Rs. _____(Rs. _____). We _____ Bank / Limited registered in India under _____ Act and having one or our local head office at _____ do hereby -

1. Guarantee of the Government -
 - a) Due performance and observance by the Bidder of the terms, covenants and conditions on the part of the Bidder contained in the said agreement and
 - b) Due and punctual payment by the Bidder to the Government of all sums of money losses, damage, costs, charges, penalties and expenses payable to the Government by the Bidder under or in respect of the said agreement.
2. Under to pay to the Government on demanded and without demure and notwithstanding any court or tribunal relating there to the said sum of Rs. _____ (Rs. _____ only) or such less sum may be demanded by the Government from us our liability hereunder being absolute and unequivocal and agree that -
 - (A) The guarantee herein contained shall remain in full force and effect during the subsistence of the said agreement and that same will continue to be enforceable till and all the dues of the Government under or by virtue of the said agreement have been duly paid and its claims satisfied or discharged and till the Government certifies that the terms and conditions of the said agreement have been fully property carried out by Bidder.
 - (B) We shall not be discharged or released from the liability under this Government by reasons of -
 - (i) Any change in the constitution of the Bank or the Bidder or ,
 - (ii) Any arrangement entered into between the Government and the Bidder with or without our consent.

- (iii) Any forbearance or including shown to the Bidder.
- (iv) Any variation in the terms covenants or conditions contained in the said agreement.
- (v) Any time given to the Bidder or -

I Our liabilities hereunder shall be joint and several with that of the contract as if we were the principal debtors in respect of the said sum of _____ Rs. _____(Rs. _____ only.

(D) We shall not revoke this guarantee during its currency except with the previous consent in writing of the Government IN WITNESS WHERE OF The Common Seal of _____ has been here into affixed this day of _____ The common seal of _____ was pursuant to the resolution to of the Board of Directors of the company dated the _____ day of _____ herein affixed in the presence of who in token have here to set their respective hands in the presence of -

(1)

(2)

ANNEXURE - IV

QUALITY CONTROL TESTS & THEIR FREQUENCIES

Sr.No.	Material	Test	Frequency of Testing	Remarks
1	Sand	i) Fineness Modules	At the beginning & if there is change in source	
2	Metal	i) Crushing Value	One test per 200 Cum or part hereof	P.W.D. hand book I.S.2386 Part -IV
		ii) Impact Value		
		iii) Abrasion Value		
		iv) Water Absorption		
		v) Flakiness Index		
		vi) Stripping value		
		vii) Gradation		
3	Cement Concrete	Compressive Strength	Upto 5 Cum - 1 set	M.O.R.T.& H. Specification. 1716 (Fourth revision 01)
			6-15 - 2 sets	
			16-30 - 3 sets	
			31-50 - 4 sets	
			51 & Above - 4 sets + 1 additional 50 Cum or part thereof	
4	Cement	i) Compressive Strength	One test for each consignment of 50 MT (1000 bags) or part thereof.	I.S. 8112 - 1989
		ii) Initial Setting Time		
		iii) Final Setting Time		
		iv) Specific Gravity		
		v) Soundness		
		vi) Fineness		
5	Steel	i) Weight per meter	One test for every 5.0 M.T. or part thereof for each diameter.	I.S. 432 IS 1786-1985
		ii) Ultimate Tensile Stress		
		iii) Yield Stress		
		iv) Elongation		

Sr.No.	Material	Test	Frequency of Testing	Remarks
6	Granular Sub-Base	i) Gradation	One test per 200 cum	MORT&H specification Table 900-3 (Fourth Revision 2001)
		ii) Aturberg limits	One test per 200 cum	
		iii) Moisture content prior to compaction	One test per 250 cum	
		iv) Density and compacted layer	One test per 500 Sqm	
7	Brick	i) Crushing Value ii) Water Absorption	A set of 15 brick for each 34,000 consignment or part thereof.	I.S. 1077
8	Manglore tiles.	i) Breaking load. ii) Water Absorption	A set of 6 tiles for each 34,000 tiles or part thereof.	I.S. 654-1972
9	Flooring tiles	i) Flexural strength. ii) Water Absorption	A set of 12 tiles for each 2,000 tiles or part thereof.	I.S. 1237-1989

Annexure V

TESTING STATEMENT

[illegible]

Bidders :- _____

Name :- _____

Name of Work :-**CONSTRUCTION OF INTERNAL ROAD FROM KOTHALA TO KOTHALA TANDA, TQ.GHANSAWANGI, DIST. JALNA.****SCHEDULE 'B'**

QUANTITY estimated but may be more or less	Item No.	Item of Work	Estimated Rates		Unit	Total Amount according to estimated quantities
			In Figures (Rs.)	In Words		
1498.500	Cum.	(1) Excavation for catch / side water gutter in all sorts of soils to the specified section including stacking the excavated stuff in a regular bund and disposing of unsuitable or excess stuff as directed all sorts of soils.	73.00	Rupees SeventyThree Only	One Cubic Meter	₹.1,09,391.00
457.880	Cum.	(2) Supplying 60mm trap/granite/quartzite/ gneiss stone metal of required size by bringing the boulders / Rubble at the road side breaking them to required gradation including conveying the boulders /Rubble and stacking the broken metal etc. complete .	964.82	Rupees Nine Hundred SixtyFour Paise EightyTwo Only	One Cubic Meter	₹.4,41,772.00
277.500	Cum.	(3) Supplying 40mm trap/granite/quartzite /gneiss stone metal of required size by bringing the boulders / Rubble at the road side breaking them to required gradation including conveying the boulders /Rubble and stacking the broken metal etc. complete . a)40 mm Metal, By breaking rubble obtained by blasting.(Hand broken).	1014.82	Rupees One Thousand Fourteen Paise EightyTwo Only	One Cubic Meter	₹.2,81,613.00
627.150	Cum	(4) Supplying hard murum/ kankar at the road site, including conveying and stacking complete.	537.71	Rupees Five Hundred ThirtySeven Paise SeventyOne Only	One Cubic Meter	₹.3,37,225.00
83.250	Cum.	(5) Supplying soft murum at the road site, including conveying and stacking complete.	507.71	Rupees Five Hundred Seven Paise SeventyOne Only	One Cubic Meter	₹.42,267.00
735.380	Cum.	(6) Spreading 80/40 mm metal for road work including sectionong etc complete as directed by Engineer in charge .	85.00	Rupees EightyFive Only	One Cubic Meter	₹.62,507.00
710.400	Cum.	(7) Spreading hard murum/ soft murrum/ gravel or kankar for side width complete	63.00	Rupees SixtyThree Only	One Cubic Meter	₹.44,755.00
5827.500	Sqm.	(8) Compacting the sub grade/gravel/oversize metal (200 mm loose) layers for all width with Power roller having weight 8 to 10 MT. including necessary, labour, materials and artificial watering complete.	27.00	Rupees TwentySeven Only	One Square Meter	₹.1,57,343.00

Contractor.

No. of Correctuons

Executive Engineer.,
P.W. Division, Partur

QUANTITY estimated but may be more or less	Item No.	Item of Work	Estimated Rates		Unit	Total Amount according to estimated quantities
			In Figures (Rs.)	In Words		
7.500 Rgm.	(9)	Providing and laying cement concrete pipe of IS 458:2003 NP-2 class of 900mm diameter in proper line, level and slope including providing and fixing collars in cement mortar 1:2 and curing etc. complete.	4228.00	Rupees Four Thousand Two Hundred TwentyEight Only	One Running Meter	₹.31,710.00
2035.000 Sqm.	(10)	Clearing and grubbing road land including uprooting rank vegetation, grass, bushes, shrubs, saplings and trees girth up to 300 mm, removal of stumps of trees cut earlier and disposal of unserviceable materials and stacking of serviceable material to be used or auctioned up to a lead of 1000 metres including removal and disposal of top organic soil not exceeding 150 mm in thickness.	9.00	Rupees Nine Only	One Square Meter	₹.18,315.00
TOTAL RA. (Part-I)						₹.15,26,898.00
1.000 Nos.	(10)	Caarring out testing for agreeegates Water Absorption, Specific gravity, impact value and crushing value test of agreeegates includign all leads and stacking etc. completes	2450.00	Rupees Two Thousand Four Hundred Fifty Only	Each Number	₹.2,450.00
2.000 Nos.	(11)	Carrying out Soil/Murum Sieve analysis including all lead and stacking etc. complete	650.00	Rupees Six Hundred Fifty Only	Each Number	₹.1,300.00
1.000 Nos.	(12)	Carrying out Soil/Murum Liquid limit and plastic limit including all lead and stacking etc. complete	1100.00	Rupees One Thousand One Hundred Only	Each Number	₹.1,100.00
(13) Royalty charges as per Revenue and forest Department's notification						
1445.780 Cum.	A)	Metal & Murum	144.16	Rupees One Thousand Two Hundred Only	Each Number	₹.2,08,424.00
0.000 Cum.	B)	Sand	158.29	Rupees One Hundred FourtyOne Paise ThirtyFour Only	One Cubic Meter	₹.0.00
TOTAL RA. (Part-II)						₹.2,13,274.00
TOTAL RA. Part-I+II						₹.17,40,172.00

Contractor.

No. of Correctuons

Executive Engineer,,
P.W. Division, Partur